



# New Towns Act 1981

## 1981 CHAPTER 64

An Act to consolidate certain enactments relating to new A.D. 1981. towns and connected matters, being (except for section 43 of the New Towns Act 1965 and sections 126 and 127 of the Local Government, Planning and Land Act 1980 and certain related provisions) enactments which apply only to England and Wales. [30th October 1981]

**B**E IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

### PART I

#### NEW TOWNS AND THEIR DEVELOPMENT CORPORATIONS

##### *New towns*

**1.**—(1) If the Secretary of State is satisfied, after consultation with any local authorities who appear to him to be concerned, that it is expedient in the national interest that any area of land should be developed as a new town by a corporation established under this Act, he may make an order designating that area as the site of the proposed new town. Designation of areas.

(2) Subsection (1) above applies, in relation to land within the area for which the Development Board for Rural Wales is for the time being responsible under the Development of Rural Wales Act 1976, as if that subsection referred to the expediency of the Board's developing the area of land designated in the order as a new town. 1976 c. 75.

**PART I**

(3) An order under this section may include in the area designated as the site of the proposed new town any existing town or other centre of population; and references in this Act to a new town or proposed new town shall be construed accordingly.

(4) Schedule 1 to this Act has effect with respect to the procedure to be followed in connection with the making of orders under this section and with respect to the validity and date of operation of such orders.

(5) An order under this section shall, when operative, be a local land charge, and—

(a) section 13(4) below applies where it is proposed to make an order under this section; and

(b) section 77(4) below applies to any order under this section which designates an area as the site of a proposed new town, and to certain orders for extending the area of a new town.

Reduction of  
designated  
areas.

**2.**—(1) The Secretary of State may make an order excluding any land specified in the order from the area of a new town if, after consulting—

(a) the development corporation for the town, and

(b) any county council and district council in whose area the land is situated,

he is satisfied that it is expedient to make the order.

(2) Subject to subsections (3) and (4) below, on the coming into force of an order under subsection (1) above—

(a) the land specified in the order shall cease to be contained in the area of the new town; and

(b) the order made under section 1 above designating the area shall cease to operate as regards that land.

(3) The Secretary of State may in an order under this section make such provision by way of savings and transitional provisions (including provisions amending provisions made by or under an enactment) as he thinks fit, and subsection (2) above applies subject to any such savings and transitional provisions.

(4) Schedule 2 to this Act applies with respect to the effect of an order made under this section.

(5) Where the Development Board for Rural Wales is responsible under the Development of Rural Wales Act 1976 for the development of a new town, this section and Schedule 2 shall apply as if the Board were the development corporation for the new town.

*Development corporations*

## PART I

3.—(1) The Secretary of State shall by order establish a corporation, in this Act called a development corporation, for the purposes of the development of each new town the site of which is designated under section 1 above, subject to section 3(2) of the Development of Rural Wales Act 1976.

Establishment of development corporations for new towns.  
1976 c. 75.

(2) A development corporation shall be a body corporate by such name as may be prescribed by the order, and shall consist of—

- (a) a chairman ;
- (b) a deputy chairman ; and
- (c) such number of other members, not exceeding 11, as may be prescribed by the order.

(3) Schedule 3 to this Act has effect with respect to the constitution and proceedings of a development corporation.

(4) Nothing in this Act (except the express provision relating to stamp duty in section 72(1) below) shall be construed as exempting a development corporation from liability for any tax, duty, rate, levy or other charge whatsoever, whether general or local.

4.—(1) The objects of a development corporation established for the purposes of a new town shall be to secure the laying out and development of the new town in accordance with proposals approved in that behalf under this Act.

Objects and general powers of development corporations.

(2) To secure such laying out and development every development corporation shall have power (subject to section 5 below)—

- (a) to acquire, hold, manage and dispose of land and other property,
  - (b) to carry out building and other operations,
  - (c) to provide water, electricity, gas, sewerage and other services,
  - (d) to carry on any business or undertaking in or for the purposes of the new town,
- and generally to do anything necessary or expedient for the purposes or incidental purposes of the new town.

(3) In relation to subsection (2) above—

- (a) the power of acquiring land conferred by that subsection on a development corporation includes power to acquire any land within the area of the new town, whether or not it is proposed to develop that particular land ; and
- (b) the power of disposing of land conferred by that subsection on a development corporation includes, in relation to any land within the area of the new town,

## PART I

power to dispose of that land, whether or not the development of that particular land has been proposed or approved under section 7(1) below.

(4) A development corporation (without prejudice to the generality of the powers conferred on development corporations by this Act)—

- (a) may, with the Secretary of State's consent, contribute such sums as he may, with the Treasury's concurrence, determine towards expenditure incurred or to be incurred by any local authority or statutory undertakers in the performance, in relation to the new town, of any of their statutory functions, including expenditure so incurred in the acquisition of land ; and
- (b) may, with the like consent, contribute such sums as the Secretary of State, with the like concurrence, may determine by way of assistance towards the provision of amenities for the new town.

(5) A transaction between a person and a development corporation shall not be invalidated by reason of any failure by the corporation to observe—

- (a) the objects in subsection (1) above, or
- (b) the requirement in subsection (2) above that the corporation shall exercise the powers conferred by that subsection for the purpose there mentioned,

but (it being declared for the avoidance of doubt) nothing in this section shall be construed as authorising the disregard by a development corporation of any enactment or rule of law.

Restrictions on powers of development corporations.

5.—(1) A development corporation does not have power to borrow money except in accordance with sections 58 to 60 below.

(2) The Secretary of State may give directions to any development corporation—

- (a) for restricting the exercise by them of any of their powers under this Act, or
- (b) for requiring them to exercise those powers in any manner specified in the directions.

This subsection does not apply to the following provisions of this Act—

- (i) Part III,
- (ii) section 2 and Schedule 2, and sections 63 and 64,

## PART I

and is without prejudice to any provision requiring the Secretary of State's consent to be obtained for anything to be done by a development corporation.

(3) Before giving any directions to a development corporation under subsection (2) above, the Secretary of State shall—

(a) consult with the chairman of the corporation, or,

(b) if the chairman is not available, consult with the deputy chairman,

unless he is satisfied that, on account of urgency, such consultation is impracticable.

(4) A transaction between—

(a) a person, and

(b) a development corporation acting in purported exercise of their powers under this Act,

shall not be void by reason only that it was carried out in contravention of a direction given by the Secretary of State under subsection (2) above, and such a person shall not be concerned to see or enquire whether a direction under that subsection has been given or complied with.

(5) Nothing in this Act shall be construed as authorising a development corporation to carry on—

(a) any undertaking for the supply of water, electricity or gas, or

(b) any railway, light railway, tramway or trolley vehicle undertaking,

except under the authority of an enactment not contained in this Act specifically authorising them to do so or, in the case of a trolley vehicle undertaking, under the authority of such an enactment or of an order under section 32 below.

6.—(1) If, in the case of the area of any new town—

(a) it appears to the Secretary of State that there are exceptional circumstances which render it expedient that the functions of a development corporation under this Act should be performed by the development corporation established for the purposes of any other new town instead of by a separate corporation established for the purpose, then

(b) instead of establishing such a corporation, he may by order direct that those functions shall be performed by the development corporation established for that other new town.

Allocation or  
transfer of  
new town  
functions.

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(2) If it appears to the Secretary of State that there are exceptional circumstances which render it expedient that the functions of a development corporation established for the purposes of a new town should be transferred—

(a) to the development corporation established for the purposes of any other new town, or

(b) to a new development corporation to be established for the purposes of the first-mentioned new town.

he may by order provide for the dissolution of the first-mentioned corporation and for the transfer of its functions, property, rights and liabilities—

(i) to the development corporation established for the purposes of that other new town, or, as the case may be,

(ii) to a new corporation established for the purposes of the first-mentioned new town by the order.

(3) An order under this section—

(a) providing for the exercise of functions in relation to a new town by the development corporation established for the purposes of another new town, or

(b) providing for the transfer of such functions to such a corporation,

may modify the name and constitution of that corporation in such manner as appears to the Secretary of State to be expedient; and for the purposes of this Act that corporation shall be treated as having been established for the purposes of each of those new towns.

This subsection is without prejudice to the other provisions of this Act with respect to the variation of orders.

(4) Before making an order under this section—

(a) providing for the transfer of functions from or to a development corporation, or

(b) providing for the exercise of any functions by such a corporation,

the Secretary of State shall consult with that corporation.

*Planning control in new towns*

Planning  
control.

7.—(1) In relation to a new town—

(a) the development corporation shall from time to time submit to the Secretary of State, in accordance with any directions given by him in that behalf, their proposals for the development of land within the area of the new town; and

- (b) the Secretary of State, after consultation with the district planning authority within whose area the land is situated, and with any other local authority who appear to him to be concerned, may approve any such proposals either with or without modification.

(2) A special development order made by the Secretary of State under section 24 of the Town and Country Planning Act 1971 c. 78. 1971 with respect to the area of a new town—

- (a) may grant permission for any development of land in accordance with proposals approved under subsection (1) above; and
- (b) such permission shall be subject to such conditions, if any (including conditions requiring details of any proposed development to be submitted to the district planning authority) as may be specified in the order.

This subsection is without prejudice to the generality of the powers conferred by section 24 of that Act of 1971.

(3) In this section the references to a district planning authority shall in relation to proposals for any development which is a county matter as defined in paragraph 32 of Schedule 16 to the Local Government Act 1972, be construed as references to 1972 c. 70. the county planning authority.

8. It is the Secretary of State's duty to give to a development corporation such directions—

Features of special architectural or historic interest.

- (a) with respect to the disposal of land acquired by them under this Act, and

- (b) with respect to the development by them of such land,

as appear to him to be necessary or expedient for securing, so far as practicable, the preservation of any features of special architectural or historic interest, and in particular of buildings included in any list compiled or approved, or having effect as if compiled or approved, under section 54(1) of the Town and Country Planning Act 1971 (which relates to the compilation or approval by the Secretary of State of lists of buildings of such interest).

9.—(1) In the case of land—

Frontages and abutments.

- (a) which forms a frontage to a road, or

- (b) which abuts on or is adjacent to a road,

a local highway authority or the Secretary of State may enter into an agreement with any owner of the land imposing on the land, so far as that owner's interest in the land enables him to bind it, restrictions for controlling the development of the land.

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(2) Any restrictions imposed by an agreement under subsection (1) above may be enforced by the local highway authority or the Secretary of State, as the case may be, against the owner referred to in that subsection and any person deriving title under him in the like manner and to the like extent—

- (a) as if that authority or the Secretary of State were possessed of, or interested in, adjacent land ; and
- (b) as if that agreement had been entered into for the benefit of such land.

*Acquisition of land by development corporations and  
highway authorities*

Acquisition  
of land by  
development  
corporations.

10.—(1) A development corporation may, with the Secretary of State's consent, acquire by agreement, or may, by means of an order made by the corporation and submitted to and confirmed by the Secretary of State in accordance with Part I of Schedule 4 to this Act, be authorised to acquire compulsorily—

- (a) any land within the area of the new town, whether or not it is proposed to develop that particular land ;
- (b) any land adjacent to that area which they require for purposes connected with the development of the new town ;
- (c) any land, whether adjacent to that area or not, which they require for the provision of services for the purposes of the new town.

(2) A compulsory purchase order under this section shall, in so far as it relates to land—

- (a) which is the property of a local authority, or which is held inalienably by the National Trust, or
- (b) which forms part of a common, open space or fuel or field garden allotment,

be subject to the special provisions of Part IV of Schedule 4.

(3) Where a development corporation have been authorised under subsection (1) above to acquire compulsorily land forming part of a common, open space or fuel or field garden allotment, they may be authorised under that subsection to acquire compulsorily, or may, with the Secretary of State's consent, acquire by agreement, land for giving in exchange for the land acquired.

(4) Part V of Schedule 4 has effect with respect to the validity and date of operation of compulsory purchase orders under this section.

(5) In relation to operational land of statutory undertakers this section has effect subject to section 13 below.



**11.—**(1) Where the Secretary of State is satisfied that the construction or improvement of a road is needed—

PART I

Acquisition  
of land for  
highways.

(a) outside the area of a new town, for the purpose of securing the development of land in that area in accordance with proposals approved by him under section 7 above, or

(b) for the purpose of providing proper means of access to such an area,

a local highway authority may be authorised by means of an order made by the authority and submitted to and confirmed by the Secretary of State in accordance with Parts I and II of Schedule 4 to this Act, to acquire compulsorily any land as to which he is satisfied that its acquisition by the authority is requisite—

(i) for the construction or improvement of the road, or

(ii) for carrying out the improvement, or controlling the development, of frontages to the road or of lands abutting on or adjacent to the road.

(2) If the Secretary of State—

(a) is satisfied that the construction or improvement of a road is needed to supersede a part of a trunk road, and

(b) it appears to him that such supersession is expedient for any such purpose as is mentioned in subsection (1)(a) or (b) above,

he may be authorised, by means of an order made by him in accordance with Part III of Schedule 4, to acquire compulsorily any land as to which he is satisfied that its acquisition by him is requisite as mentioned in subsection (1)(i) or (ii).

(3) A compulsory purchase order under this section shall, in so far as it relates to land—

(a) which is the property of a local authority or which is held inalienably by the National Trust, or

(b) which forms part of a common, open space or fuel or field garden allotment,

be subject to the special provisions of Part IV of Schedule 4.

(4) Where an acquiring authority have been authorised under subsection (1) or subsection (2) above to acquire compulsorily land forming part of a common, open space or fuel or field garden allotment, that authority may be authorised under the same subsection to acquire compulsorily land for giving in exchange for the land acquired.

(5) Part V of Schedule 4 has effect with respect to the validity and date of operation of compulsory purchase orders under this section.

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(6) A local highway authority may, with the Secretary of State's consent, acquire by agreement any land which they could be authorised under subsection (1) to acquire compulsorily.

(7) In relation to operational land of statutory undertakers the foregoing provisions of this section have effect subject to section 13 below.

Local land charges under ss. 10 and 11.

**12.** A compulsory purchase order under section 10 or section 11 above shall, when operative, be a local land charge.

Acquisition of statutory undertakers' operational land.

**13.—(1)** In the case of operational land of statutory undertakers—

(a) an order—

(i) under section 10(1) above authorising the compulsory acquisition of that land by a development corporation, or

(ii) under section 11(1) above authorising its compulsory acquisition by a local highway authority,

instead of being made and confirmed as provided in section 10(1) or section 11(1), as the case may be, may be made by the Secretary of State and the appropriate Minister in accordance with Part I of Schedule 5 to this Act, on the application of that development corporation or local highway authority,

(b) an order under section 11(2) authorising the compulsory acquisition of that land by the Secretary of State, instead of being made as provided in section 11(2), may be made by the Secretary of State and the appropriate Minister in accordance with Part II of Schedule 5,

and in relation to a compulsory purchase order made as provided in paragraph (a) or paragraph (b) above Parts IV and V of Schedule 4 to this Act shall apply accordingly, subject in the case of Part V to the modifications set out in Part III of Schedule 5.

(2) If—

(a) any objection to an application for a compulsory purchase order to be made in accordance with subsection (1)(a) above, or to a proposal to make such an order in accordance with subsection (1)(b) above, is duly made by any statutory undertakers, and

(b) any of the land to which the application or the proposal relates is operational land of those undertakers.

then, unless that objection is withdrawn, any order made on the application or proposal shall be subject to special parliamentary procedure.

## PART I

(3) Where a compulsory purchase order under section 10 or section 11, not being an order made as provided in subsection (1)(a) or subsection (1)(b), is submitted, or is proposed to be made, in accordance with Schedule 4, and with respect to any land (being the whole or part of the land to which the order relates) statutory undertakers make to the appropriate Minister, in the prescribed manner and within the time within which objections to the order may be made—

(a) a representation that the first-mentioned land is operational land, and

(b) a request for that land to be excluded from the order, and it is determined that that land is operational land, then, subject to the following provisions of this section—

(i) if that land constitutes the whole of the land to which the order relates, the order shall not be confirmed or not be made, as the case may be ; and

(ii) if that land forms part only of the land to which the order relates, the order shall be modified so as to exclude that land.

(4) Where it is proposed to make an order under section 1 above, any statutory undertakers may, with respect to any land within the area to be designated by the order as the site of the proposed new town, make to the appropriate Minister, in the prescribed form and within the time allowed for making objections to the order, a representation that that land is operational land.

(5) Where a representation is made under subsection (4) above with respect to any land, the Secretary of State and the appropriate Minister may make an order, which shall be subject to special parliamentary procedure, declaring that it is expedient that that land should be subject to compulsory acquisition.

(6) Where, in the case of a compulsory purchase order under section 10, any land to which the order relates is within the area of a new town and is land in relation to which, apart from this subsection, subsection (3) above would apply, then subsection (3) shall not apply in relation to that land—

(a) if no representation was made under subsection (4) with respect thereto ; or

(b) if an order under subsection (5) above has come into force with respect thereto.

## PART I

Application of  
Compulsory  
Purchase Act  
1965 and  
modification  
of Land  
Compensation  
Act 1961.

1965 c. 56.

1961 c. 33.

1845 c. 20.

1923 c. 20.

**14.**—(1) Part I of the Compulsory Purchase Act 1965 applies in relation to the acquisition of land under this Act subject to any necessary adaptations and to Part I of Schedule 6 to this Act.

(2) The Land Compensation Act 1961, in its application for the purposes of this Act, has effect subject to any necessary adaptations and to Part II of Schedule 6.

(3) A compulsory purchase order may provide for the incorporation with this Act of section 77 of the Railway Clauses Consolidation Act 1845 (which relates to the exception of minerals from purchases) and sections 78 to 85 of that Act (which relate to restrictions on the working of minerals) as originally enacted and not as amended for certain purposes by section 15 of the Mines (Working Facilities and Support) Act 1923, or of that section 77 only.

(4) The provision referred to in subsection (3) above—

(a) may be made as to all or any of the land to which the compulsory purchase order relates, and

(b) may include such modification of references in those sections to the railway or works, or to the company, as may be specified in the order,

and for the purposes of any such incorporation of those sections, this Act and the compulsory purchase order shall be deemed to be the special Act.

Compensation  
for acquisition  
of statutory  
undertakers'  
operational  
land.

**15.**—(1) Where statutory undertakers are entitled to compensation in respect of a compulsory acquisition under this Act of operational land, Schedule 7 to this Act shall have effect as regards the assessment of the amount of that compensation.

(2) In this section "compensation in respect of a compulsory acquisition" includes—

(a) compensation payable in connection with the acquisition for damage sustained by reason of the severing of the land acquired from other land held therewith or otherwise injuriously affecting such other land; and

(b) compensation payable for disturbance or any other matter not directly based on the value of the land.

Extinguish-  
ment of rights  
over land  
compulsorily  
acquired.

**16.**—(1) Subject to the provisions of this section, upon the completion by the acquiring authority of a compulsory acquisition of land under this Act, all private rights of way and rights of laying down, erecting, continuing or maintaining any apparatus on, under or over the land shall be extinguished, and any such apparatus shall vest in the acquiring authority.

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(2) Subsection (1) above shall not apply to any right vested in, or apparatus belonging to, statutory undertakers for the purpose of the carrying on of their undertaking.

(3) In respect of any right or apparatus not falling within subsection (2) above, subsection (1) shall have effect subject—

(a) to any direction given by the acquiring authority before the completion of the acquisition that subsection (1) shall not apply to any right or apparatus specified in the direction; and

(b) to any agreement which may be made (whether before or after the completion of the acquisition) between the acquiring authority and the person in or to whom the right or apparatus in question is vested or belongs.

(4) Any person who suffers loss by the extinguishment of a right or the vesting of any apparatus under this section shall be entitled to compensation from the acquiring authority.

(5) Any compensation payable under this section shall be determined in accordance with the Land Compensation Act 1961 c. 33. 1961.

*Disposal of land by development corporation*

17.—(1) In relation to any land acquired by a development corporation, and— Conditions as to disposal.

(a) subject to this section and to any direction given by the Secretary of State under this Act, and

(b) whether or not, in the case of land within the area of the new town, the development of that particular land has been proposed or approved under section 7(1) above,

the development corporation may dispose of that land—

(i) to such persons,

(ii) in such manner,

(iii) subject to such covenants or conditions,

as they consider expedient for securing the development of the new town in accordance with proposals approved by the Secretary of State under that section 7(1), or for purposes connected with the development of the new town.

(2) A development corporation has no power, except with the Secretary of State's consent (given generally or specially)—

(a) to transfer the freehold of any land, or

(b) to grant a lease of any land for a term of more than 99 years.

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(3) Where a development corporation purports to dispose of land by virtue of this section, then—

- (a) in favour of any person claiming under the corporation, the disposal so purporting to be made shall not be invalid by reason that any consent which is required under subsection (2) above has not been given ; and
- (b) a person dealing with the corporation or a person claiming under the corporation shall not be concerned to see or enquire whether any such consent has been given.

(4) In this Act—

- (a) nothing shall be construed as enabling a development corporation to dispose of land by way of gift, mortgage or charge, but,
- (b) subject to paragraph (a) above, references to the disposal of land by a development corporation shall be construed as references to the disposal of land in any manner, whether by way of sale, exchange or lease, by the creation of any easement, right or privilege, or otherwise.

Disposal to  
pre-acquisition  
occupiers.

**18.—**(1) In relation to land acquired by a development corporation under this Act, if persons who were living or carrying on business or other activities on land so acquired—

- (a) desire to obtain accommodation on land belonging to the corporation, and
- (b) are willing to comply with any requirements of the corporation as to its development and use,

the corporation's powers with respect to the disposal of that land shall be exercised as provided in subsection (2) below.

(2) The corporation's powers referred to in subsection (1) above shall be so exercised as to secure, so far as practicable, that those persons have an opportunity to obtain such accommodation suitable to their reasonable requirements, on terms settled with due regard to the price at which such land has been acquired from them.

(3) In the case of a person who was carrying on a business of selling intoxicating liquor ("intoxicating liquor" having the meaning given in section 201(1) of the Licensing Act 1964) by retail on land acquired by a development corporation under this Act, the corporation is not under any duty to afford him an opportunity of obtaining alternative accommodation for such a business.

*Powers exercisable in relation to land acquired by development corporation or highway authority*

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19.—(1) The erection, construction or carrying out, or maintenance, of any building or work on land which has been acquired by a development corporation or local highway authority for the purposes of this Act, whether done by the corporation or authority or by any other person, is authorised by virtue of this section if it is done in accordance with planning permission, notwithstanding—

Power to override easements and other rights.

- (a) that it involves interference with an interest or right to which this section applies ; or
- (b) that it involves a breach of a restriction as to the user of land arising by virtue of a contract.

(2) Nothing in subsection (1) above authorises interference with any right of way or right of laying down, erecting, continuing or maintaining apparatus on, under or over land, being a right vested in or belonging to statutory undertakers for the purpose of the carrying on of their undertaking.

(3) This section applies to the following interests and rights, that is to say, any easement, liberty, privilege, right or advantage annexed to land and adversely affecting other land, including any natural right to support.

(4) In respect of any interference or breach in pursuance of subsection (1), compensation shall be payable under section 7 or section 10 of the Compulsory Purchase Act 1965, to be assessed in the same manner and subject to the same rules as in the case of other compensation under those sections in respect of injurious affection where—

- (a) the compensation is to be estimated in connection with a purchase by a development corporation or local highway authority ; or
- (b) the injury arises from the execution of works on land acquired by such a corporation or authority.

(5) Where a person other than the development corporation or local highway authority by whom the land in question was acquired is liable to pay compensation by virtue of subsection (4) above, and fails to discharge that liability, the liability shall be enforceable against that corporation or authority.

(6) Nothing in subsection (5) above shall be construed as affecting any agreement between that corporation or authority and any other person for indemnifying the corporation or authority against any liability under that subsection.

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(7) Nothing in this section shall be construed as authorising any act or omission on the part of any person which is actionable at the suit of any person on any grounds other than such an interference or breach as is mentioned in subsection (1).

(8) Nothing in this section shall be construed as authorising any act or omission on the part of a development corporation or local highway authority, or of any body corporate, in contravention of any limitation imposed by law on their capacity by virtue of the constitution of the corporation, authority or body.

Consecrated  
land and  
burial grounds.

20.—(1) Any consecrated land, whether including a building or not, which has been acquired for the purposes of this Act by a development corporation or local highway authority, or which has been acquired under this Act by the Secretary of State, may, subject to this section—

(a) in the case of land acquired by such a corporation or authority, be used by them, or by any other person, in any manner in accordance with planning permission, and

(b) in the case of land acquired by the Secretary of State, be used in any manner by him or on his behalf for any purpose for which he acquired the land,

notwithstanding any obligation or restriction imposed under ecclesiastical law or otherwise in respect of consecrated land.

This subsection does not apply to land which consists or forms part of a burial ground.

(2) Any use of consecrated land authorised by subsection (1) above—

(a) shall be subject to compliance with the prescribed requirements with respect to the removal and reinterment of any human remains and the disposal of monuments and fixtures and furnishings, and

(b) shall be subject to such provisions as may be prescribed for prohibiting or restricting the use of the land, either absolutely or until the prescribed consent has been obtained, so long as any church or other building used or formerly used for religious worship, or any part of it, remains on the land,

and the use of any land, not being consecrated land, acquired as mentioned in subsection (1), which at the time of acquisition included a church or other building used or formerly used for religious worship, or its site, shall be subject to compliance with the requirements mentioned in paragraph (a) above.



(3) Any regulations made for the purposes of subsection (2) above—

- (a) shall contain such provisions as appear to the Secretary of State to be requisite for securing that any use of land which is subject to compliance with the regulations shall, as nearly as may be, be subject to the like control as is imposed by law in the case of a similar use authorised by an enactment not contained in this Act or by a Measure, or as it would be proper to impose on a disposal of the land in question otherwise than in pursuance of an enactment or Measure ;
- (b) shall contain requirements relating to the disposal of any such land as is mentioned in subsection (2) such as appear to the Secretary of State requisite for securing that the provisions of that subsection shall be complied with in relation to the use of the land ; and
- (c) may contain such incidental and consequential provisions (including provision as to the closing of registers) as appear to the Secretary of State to be expedient for the purposes of the regulations.

(4) Any land consisting of a burial ground or part of a burial ground, which has been acquired as mentioned in subsection (1) may—

- (a) in the case of land acquired by a development corporation or local highway authority, be used by them in any manner in accordance with planning permission, and
- (b) in the case of land acquired by the Secretary of State, be used in any manner by him or on his behalf for any purpose for which he acquired the land,

notwithstanding anything in any enactment relating to burial grounds or any obligation or restriction imposed under ecclesiastical law or otherwise in respect of burial grounds.

(5) Subsection (4) above does not have effect in respect of any land which has been used for the burial of the dead until the prescribed requirements with respect to the removal and reinterment of human remains, and the disposal of monuments, in and upon the land have been complied with.

(6) Provision shall be made by any regulations for the purposes of subsections (2) and (5) above—

- (a) for requiring the persons in whom the land is vested to publish notice of their intention to carry out the removal and reinterment of any human remains or the disposal of any monuments ;

## PART I

(b) for enabling the personal representatives or relatives of any deceased person themselves to undertake the removal and reinterment of the remains of the deceased, and the disposal of any monument commemorating the deceased, and for requiring the persons in whom the land is vested to defray the expenses of such removal, reinterment and disposal, not exceeding such amount as may be prescribed ;

(c) for requiring compliance with such reasonable conditions (if any) as may be imposed, in the case of consecrated land, by the bishop of the diocese, with respect to the manner of removal, and the place and manner of reinterment of any human remains, and the disposal of any monuments, and with any directions given in any case by the Secretary of State with respect to the removal and reinterment of any human remains.

(7) Subject to any such regulations, no faculty shall be required—

(a) for the removal and reinterment in accordance with the regulations of any human remains, or

(b) for the removal or disposal of any monuments,

1857 c. 81.

and section 25 of the Burial Act 1857 (which prohibits the removal of human remains without the Secretary of State's licence except in certain cases) does not apply to a removal carried out in accordance with the regulations.

(8) Any power conferred by this section to use land in the manner so provided shall be construed as a power so to use the land, whether it involves the erection, construction or carrying out of any building or work, or the maintenance of any building or work, or not.

(9) Nothing in this section shall be construed as authorising any act or omission on the part of any person which is actionable at the suit of any person on any grounds other than contravention of any such obligation, restriction or enactment as is mentioned in subsection (1) or subsection (4).

(10) Subsection (8) of section 19 above applies in relation to this section as it applies in relation to that section.

(11) In this section—

“burial ground” includes any churchyard, cemetery or other ground, whether consecrated or not, which has at any time been set apart for the purposes of interment ; and

“monument” includes a tombstone or other memorial.

**21.—**(1) Any land being, or forming part of, a common, open space or fuel or field garden allotment, which has been acquired for the purposes of this Act by a development corporation or local highway authority, or which has been acquired under this Act by the Secretary of State, may—

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Open spaces.

(a) in the case of land acquired by such a corporation or authority, be used by them, or by any other person, in any manner in accordance with planning permission, and

(b) in the case of land acquired by the Secretary of State, be used in any manner by him or on his behalf for any purpose for which he acquired the land,

notwithstanding anything in any enactment relating to land of that kind, or in any enactment by which the land is specially regulated.

(2) Nothing in this section shall be construed as authorising any act or omission on the part of any person which is actionable at the suit of any person on any grounds other than contravention of any such enactment as is mentioned in subsection (1) above.

(3) Subsection (8) of section 19 above applies in relation to this section as it applies in relation to that section.

**22.** If the Secretary of State certifies that possession of a house—

Possession of houses.

(a) which has been acquired for the purposes of this Act by a development corporation or local highway authority, and

(b) which is for the time being held by that corporation or authority for the purposes for which it was acquired,

is immediately required for those purposes, nothing in the Rent 1976 c. 80. (Agriculture) Act 1976 or the Rent Act 1977 shall prevent that corporation or authority from obtaining possession of the house.

**23.—**(1) Where any land—

Extinguishment of public rights of way.

(a) has been acquired for the purposes of this Act by a development corporation or local highway authority and is for the time being held by that corporation or authority for those purposes, or

(b) has been acquired under this Act by the Secretary of State and is for the time being held for the purposes for which he acquired it,

the Secretary of State may by order extinguish any public right of way over the land.

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(2) Where the Secretary of State proposes to make an order under this section, he shall publish in such manner as appears to him to be requisite a notice—

- (a) stating the effect of the order, and
- (b) specifying the time (not being less than 28 days from the publication of the notice) within which and the manner in which, objections to the proposal may be made,

and shall serve a like notice—

- (i) on the district planning authority in whose area the land is situated ; and
- (ii) on the relevant highway authority.

In this subsection “the relevant highway authority” means any authority who are a highway authority in relation to the right of way proposed to be extinguished by the order, other than an authority who have applied for the order to be made.

(3) Where an objection to a proposal to make an order under this section is duly made and is not withdrawn, Schedule 8 to this Act shall have effect in relation to the proposal.

(4) For the purposes of this section an objection to such a proposal shall not be treated as duly made unless—

- (a) it is made within the time and in the manner specified in the notice required by this section ; and
- (b) a statement in writing of the grounds of the objection is comprised in or submitted with the objection.

(5) Where—

- (a) it is proposed to make an order under this section extinguishing a public right of way over a road on land acquired for the purposes of this Act by a development corporation, and
- (b) compensation in respect of restrictions imposed under section 1 or section 2 of the Restriction of Ribbon Development Act 1935 in respect of that road has been paid by the highway authority (or, in the case of a trunk road, by the authority who, when the compensation was paid, were the authority for the purposes of section 4 of the Trunk Roads Act 1936),

1935 c. 47.

1936 c. 5.  
(1 Edw. 8 &  
1 Geo. 6.).

the order may provide for the payment by the development corporation to that authority, in respect of the compensation so paid, of such sums as the Secretary of State, with the Treasury's consent, may determine.

(6) Where the Secretary of State is satisfied that the construction or improvement of a road is or will be needed in consequence of the extinguishment under this section of a public right of

## PART I

way, section 11 above shall apply as it applies where the Secretary of State is satisfied that the construction or improvement of a road is needed as mentioned in subsection (1) of that section.

(7) Where the Secretary of State makes an order under this section on the application of a development corporation or local highway authority, he shall send a copy of that order to British Telecommunications.

**24.** Where an order under section 23 above extinguishing a public right of way is made on the application of a development corporation or local highway authority, and at the time of the publication of the notice required by subsection (2) of that section there was under, in, on, over, along or across the land over which the right of way subsisted a telegraphic line belonging to or used by the Post Office or British Telecommunications—

- (a) the power of British Telecommunications to remove the line shall, notwithstanding the making of the order, be exercisable at any time not later than the end of the period of 3 months from the date on which the right of way is extinguished, and shall be exercisable in respect of the whole or any part of the line after the end of that period if before the end of that period British Telecommunications has given notice to the development corporation or local highway authority of its intention to remove the line or that part of it, as the case may be ;
- (b) British Telecommunications may by notice given in that behalf to the development corporation or local highway authority not later than the end of that period of 3 months abandon the telegraphic line or any part of it ;
- (c) subject to paragraph (b) above, British Telecommunications shall be deemed at the end of that period to have abandoned any part of the line which it has then neither removed nor given notice of its intention to remove ;
- (d) British Telecommunications shall be entitled to recover from the development corporation or local highway authority the expense of providing, in substitution for the line and any connected telegraphic line which is rendered useless in consequence of the removal or abandonment of the line, a telegraphic line in such other place as British Telecommunications may require ;
- (e) where under the foregoing provisions of this section British Telecommunications has abandoned the whole or any part of a telegraphic line, it shall vest in the

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development corporation or local highway authority, and the provisions of the Telegraph Acts 1863 to 1916 shall not apply in relation to the line or that part of it with respect to anything done or omitted after its abandonment.

1878 c. 76. In this section "telegraphic line" has the same meaning as in the Telegraph Act 1878.

Special power  
to create  
trunk roads.  
1980 c. 66.

25. The Secretary of State may direct that any road constructed by him on land transferred to or acquired by him under this Act shall, on such date as may be specified in the direction, become a trunk road within the meaning of the Highways Act 1980; and the provisions of that Act relating to trunk roads shall apply to the road accordingly.

*Statutory undertakers, and provision of trolley vehicle services*

Extinguish-  
ment of rights  
of way and  
removal of  
apparatus.

26.—(1) This section applies to land—

- (a) which has been acquired for the purposes of this Act by a development corporation or local highway authority and is for the time being held by that corporation or authority for those purposes, or
- (b) which has been acquired under this Act by the Secretary of State and is for the time being held for the purposes for which he acquired it.

(2) Where, in the case of any land to which this section applies—

- (a) there subsists over that land a right vested in or belonging to statutory undertakers for the purpose of the carrying on of their undertaking, being a right of way or a right of laying down, erecting, continuing or maintaining apparatus on, under or over the land, or
- (b) there is on, under or over the land apparatus vested in or belonging to statutory undertakers for the purpose of the carrying on of their undertaking,

the acquiring authority may serve on the statutory undertakers a notice stating that, at the end of such period as may be specified in the notice, the right will be extinguished, or requiring that, before the end of such period as may be so specified, the apparatus shall be removed.

(3) The statutory undertakers on whom a notice is served under subsection (2) above may, before the end of the period of 28 days from the service of the notice, serve a counter-notice on the acquiring authority stating that they object to all or any of the provisions of the notice, and specifying the grounds of their objection.

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(4) If no counter-notice is served under subsection (3) above—

(a) any right to which the notice relates shall be extinguished at the end of the period specified in that behalf in the notice ; and

(b) if, at the end of the period so specified in relation to any apparatus, any requirement of the notice as to the removal of the apparatus has not been complied with, the acquiring authority may remove the apparatus and dispose of it in any way the authority may think fit.

(5) If a counter-notice is served under subsection (3) on a development corporation or local highway authority, the corporation or authority—

(a) may either withdraw the notice (without prejudice to the service of a further notice), or

(b) may apply to the Secretary of State and the appropriate Minister for an order under this section embodying the provisions of the notice, with or without modification,

and if such an application is made the Secretary of State and the appropriate Minister may make an order under this section accordingly.

(6) If a counter-notice is served under subsection (3) on the Secretary of State, he may withdraw the notice (without prejudice to the service of a further notice) or he and the appropriate Minister may make an order under this section embodying the provisions of the notice, with or without modification.

(7) Where, by virtue of this section—

(a) any right vested in or belonging to statutory undertakers is extinguished, or

(b) any requirement is imposed on statutory undertakers, those undertakers shall be entitled to compensation from the acquiring authority at whose instance the right was extinguished or the requirement imposed ; and Schedule 7 to this Act has effect as regards the assessment of the amount of that compensation.

(8) So far as regards a right of British Telecommunications with respect to a telegraphic line and so far as regards such a line belonging to it, this section does not have effect in a case in which section 24 above has effect.

In this subsection “telegraphic line” has the same meaning as in the Telegraph Act 1878.

1878 c. 76.

**27.**—(1) Where the Secretary of State and the appropriate Minister propose to make an order under section 26(6) above, s. 26. they shall prepare a draft of the order.

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(2) Before making an order under section 26(5) or (6), the Ministers proposing to make the order—

- (a) shall afford to the statutory undertakers on whom notice was served under subsection (2) of that section an opportunity of objecting to the application for, or proposal to make, the order, and
- (b) if any objection is made, shall consider the objection and afford to those statutory undertakers (and, in a case falling within subsection (5) of that section, to the development corporation or local highway authority on whom the counter-notice was served) an opportunity of appearing before, and being heard by, a person appointed by the Secretary of State and the appropriate Minister for the purpose,

and may then, if they think fit, make the order in accordance with the application or in accordance with the draft order, as the case may be, either with or without modification.

(3) Where an objection to an order under section 26 is duly made and is not withdrawn before the making of the order, the order shall be subject to special parliamentary procedure.

(4) Subject to subsection (3) above, where an order is made under section 26—

- (a) any right to which the order relates shall be extinguished at the end of the period specified in that behalf in the order, and
- (b) if, at the end of the period so specified in relation to any apparatus, any requirement of the order as to the removal of the apparatus has not been complied with, the acquiring authority may remove the apparatus and dispose of it in any way the authority may think fit.

Extension or  
modification  
of functions.

**28.**—(1) The powers conferred by this section shall be exercisable where, on a representation made by statutory undertakers, it appears to the Secretary of State and the appropriate Minister to be expedient that the powers and duties of those undertakers should be extended or modified, in order—

- (a) to secure the provision of services which would not otherwise be provided, or satisfactorily provided, for the purposes of a new town under this Act; or
- (b) to facilitate an adjustment of the carrying on of the undertaking necessitated by any of the acts and events mentioned in subsection (2) below.

(2) Those acts and events are—

- (a) the acquisition under this Act of any land in which an interest was held, or which was used, for the purpose



## PART I

of the carrying on of the undertaking of the statutory undertakers in question ;

- (b) the extinguishment of a right or the imposition of any requirement by virtue of section 26 above.

(3) The powers conferred by this section shall also be exercisable where, on a representation made by a development corporation, it appears to the Secretary of State and the appropriate Minister to be expedient that the powers and duties of statutory undertakers should be extended or modified in order—

- (a) to secure the provision of new services, or  
(b) to secure the extension of existing services,

for the purposes of a new town under this Act.

(4) Where the powers conferred by this section are exercisable, the Secretary of State and the appropriate Minister may, if they think fit, by order provide for such extension or modification of the powers and duties of the statutory undertakers as appears to them to be requisite in order—

- (a) to secure the provision of the services in question, as mentioned in subsection (1)(a) or (3) above, or  
(b) to secure the adjustment in question, as mentioned in subsection (1)(b),

as the case may be.

(5) Without prejudice to the generality of subsection (4) above, an order under this section may provide—

- (a) for empowering the statutory undertakers to acquire (whether compulsorily or by agreement) any land specified in the order, and to erect or construct any buildings or works so specified ;  
(b) for applying, in relation to the acquisition of any such land or the construction of any such works, enactments relating to the acquisition of land and the construction of works ;  
(c) where it has been represented that the making of the order is expedient for the purposes mentioned in subsection (1)(a) or (3), for giving effect to such financial arrangements between the development corporation and the statutory undertakers—  
    (i) as they may agree ; or  
    (ii) in default of agreement, as may be determined to be equitable in such manner and by such tribunal as may be specified in the order ;  
(d) for such incidental and supplemental matters as appear to the Secretary of State and the appropriate Minister to be expedient for the purposes of the order.

**PART I**  
**Procedure for**  
**orders under**  
**s. 28.**

**29.—(1)** As soon as may be after making such a representation as is mentioned in section 28(1) or (3) above—

- (a) the statutory undertakers, in a case falling within subsection (1), or
- (b) the development corporation, in a case falling within subsection (3),

shall publish, in such form and manner as may be directed by the Secretary of State and the appropriate Minister, a notice—

- (i) giving such particulars as may be so directed of the matters to which the representation relates, and
- (ii) specifying the time within which, and the manner in which, objections to the making of an order on the representation may be made,

and shall also, if it is so directed by the Secretary of State and the appropriate Minister, serve a like notice on such persons, or persons of such classes, as may be so directed.

(2) Orders under section 28 shall be subject to special parliamentary procedure.

**Relief from**  
**obligations**  
**rendered**  
**impracticable.**

**30.—(1)** Where—

- (a) on a representation made by statutory undertakers, the appropriate Minister is satisfied that the fulfilment of any obligation incurred by those undertakers in connection with the carrying on of their undertaking has been rendered impracticable by an act or event to which this subsection applies, then,
- (b) the appropriate Minister may, if he thinks fit, by order direct that the statutory undertakers shall be relieved of the fulfilment of that obligation, either absolutely or to such extent as may be specified in the order.

(2) Subsection (1) above applies to the following acts and events—

- (a) the compulsory acquisition under this Act of any land in which an interest was held, or which was used, for the purpose of the carrying on of the undertaking of the statutory undertakers ;
- (b) the extinguishment of a right or the imposition of any requirement by virtue of section 26 above.

(3) As soon as may be after making a representation to the appropriate Minister under subsection (1), the statutory undertakers shall, as may be directed by the appropriate Minister, either—

- (a) publish (in such form and manner as may be so directed) a notice giving such particulars as may be so directed of the matters to which the representation relates, and

**PART I**

specifying the time within which, and the manner in which, objections to the making of an order on the representation may be made ; or

- (b) serve such a notice on such persons, or persons of such classes, as may be so directed ; or
- (c) both publish and serve such notices.

(4) If any objection to the making of an order under this section is duly made and is not withdrawn before the order is made, the order shall be subject to special parliamentary procedure.

(5) As soon as may be after an order has been made under this section the appropriate Minister shall publish in such form and manner as he thinks fit a notice stating that the order has been made.

(6) The provisions of Part V of Schedule 4 to this Act as to the validity and date of operation of compulsory purchase orders have effect in relation to an order under this section with—

- (a) the substitution for references to a compulsory purchase order of references to an order under this section ; and
- (b) the substitution for references to publication in accordance with that Schedule of references to publication in accordance with subsection (5) above.

**31.**—(1) For the purposes of sections 28 and 30 above an objection to the making of an order under those sections shall not be treated as duly made unless—

Objections to orders under ss. 28 and 30.

- (a) the objection is made within the time and in the manner specified in the notice required by the section under which the order is proposed to be made ; and
- (b) a statement in writing of the grounds of the objection is comprised in or submitted with the objection.

(2) Where an objection to the making of such an order is duly made in accordance with subsection (1) above and is not withdrawn, Schedule 8 to this Act has effect in relation to the objection.

**32.**—(1) A development corporation may by means of an order made by the Secretary of State be authorised to operate trolley vehicle services for the purposes of the corporation's new town.

Trolley vehicle services by development corporation.

(2) An order under this section may impose such conditions as appear to the Secretary of State to be required in the interests

**PART I** of the public safety, and may contain such incidental and consequential provisions as appear to him to be necessary or expedient for the purposes of the order, including provisions—

- (a) authorising the construction and maintenance in highways of any works or equipment required in connection with the services ;
- (b) providing for the making and enforcement of regulations and byelaws with respect to the construction and operation of any vehicles or equipment used for the purposes of the services, and with respect to the conduct of passengers on, and of the drivers and conductors of, any such vehicles.

(3) An order under this section shall be subject to special parliamentary procedure.

#### *Public health*

New town  
may be united  
district for  
Public Health  
Acts.

#### **33. Where—**

- (a) an order is made under section 1 above designating an area as the site of a new town, and
- (b) the Secretary of State is satisfied that, in consequence of the making of that order, it is expedient that that area, or any larger area which comprises that area, should be constituted a united district for any purpose for which a united district may be constituted under section 6 of the Public Health Act 1936,

1936 c. 49.

he may make an order under that section 6 constituting the area as to which he is so satisfied a united district, notwithstanding that no application in that behalf is made to him by the local authorities for the districts concerned or any of them.

Sewers and  
sewage  
disposal  
works.

#### **34.—(1) The Secretary of State—**

- (a) on an application made to him by the development corporation, and
- (b) after consultation with the council of every county and of every district and the water authority for every water authority area in which the whole or any part of the area of the corporation's new town is situated,

may by order authorise that development corporation to exercise, for the purpose of the sewerage of the area of the new town, any powers exercisable by a water authority under section 15 of the Public Health Act 1936 (construction of sewers and sewage disposal works).

(2) An order under this section may provide for the transfer to the development corporation of any sewers or sewage disposal

works vested in the sewerage authority for any district which comprises the area of the new town or any part of that area.

This subsection is without prejudice to the provisions of this Act with respect to the acquisition of land by development corporations.

(3) An order under this section may include a direction that such of the provisions of the Public Health Acts 1936 and 1937 or of the Public Health Act 1961 relating to sewerage and sewage disposal, or to sewers, drains, cesspools and sanitary conveniences as may be specified in the order shall apply in relation to the area of the new town, subject to such modifications as may be so specified—

- (a) as if the development corporation were a local authority as defined by those Acts, and
- (b) as if the sewers vested in the corporation were public sewers as so defined.

The references in this subsection to the provisions of those Acts of 1936 and 1961 include the provisions of those Acts relating to the payment of compensation, the breaking up of streets and the power to enter on land.

(4) Where, in pursuance of an order under this section, sewers or sewage disposal works are constructed by or vested in a development corporation for the purposes of the sewerage of any part of the district of a sewerage authority within the meaning of the Public Health Act 1936, that authority shall contribute as provided in subsection (5) below towards the expenses of the development corporation in the construction or maintenance of the sewers or sewage disposal works. 1936 c. 49.

(5) The contributions referred to in subsection (4) above shall be of such amount and subject to such conditions—

- (a) as may be agreed upon between the authority and the corporation, or
- (b) in default of such agreement, as may be determined by the Secretary of State,

and the payment of any such contributions shall be a purpose for which the sewerage authority may borrow money.

(6) Any order under this section which provides for the transfer to a development corporation of sewers or sewage disposal works vested in a sewerage authority may provide for the payment by the corporation to the authority, in consideration of the transfer, of such sum—

- (a) as may be agreed upon between the corporation and the authority, or
- (b) in default of such agreement, as may be determined by the Secretary of State.

## PART II

COMMISSION FOR THE NEW TOWNS AND TRANSFERS FROM AND  
DISSOLUTION OF DEVELOPMENT CORPORATIONS*Commission for the New Towns*

Establishment  
of  
Commission.

**35.—**(1) The body corporate established by the name of the Commission for the New Towns (in this Act referred to as the Commission) continues in being.

(2) In relation to the Commission—

(a) it is not to be regarded as the servant or agent of the Crown or as enjoying any status, immunity or privilege of the Crown, and

(b) its property is not to be regarded as property of, or held on behalf of, the Crown,

and nothing in this Act, except the express provision relating to stamp duty in section 72(1), shall be construed as exempting the Commission from liability to any tax, duty, rate, levy or other charge whatsoever, whether local or general.

1951 c. 65.

(3) Part V of the Reserve and Auxiliary Forces (Protection of Civil Interests) Act 1951 (which provides for the making to service men of payments to make up their civil remuneration) has effect as if in Part I of Schedule 2 to that Act the capacities specified in the first column included that of employee of the Commission, and the Commission were specified as respects that capacity in the second column.

(4) Schedule 9 to this Act has effect with respect to—

(a) the constitution and proceedings of the Commission, and

(b) other matters relating to the Commission and its members.

Functions of  
Commission.

**36.—**(1) The Commission is incorporated for the purpose of taking over, holding, managing and turning to account the property previously vested in the development corporation for a new town and transferred to the Commission by an order under the following provisions of this Act.

(2) It is the Commission's general duty to maintain and enhance the value of the land held by them and the return obtained by them from it, but in discharging their functions in relation to any town the Commission shall have regard to the purpose for which the town was developed under this Act and to the convenience and welfare of persons residing, working or carrying on business there.

(3) Subject to the provisions of this Act and to any direction given to them by the Secretary of State under section 37 below,

## PART II

the Commission has power, with a view to the better fulfilment of the purpose mentioned in subsection (1) above by the improvement of any of their towns, or to the convenience or welfare of persons residing, working or carrying on business there—

- (a) to acquire (otherwise than by transfer under this Act), hold, manage and turn to account land situated in or near the town, or any interest in or rights over such land ;
- (b) with the approval of the Secretary of State given with the concurrence of the Treasury, to make contributions towards the cost of providing amenities for the town, or of providing for it water supplies or sewerage or sewage disposal services ;
- (c) to promote or assist by any means, and in particular by making advances towards the cost of purchasing land, or of erecting, extending, improving or adapting buildings or works, the setting up or extension of businesses in the town ;
- (d) to dispose of any property for such purposes and in such manner as they think fit.

(4) A transaction between a person and the Commission shall not be invalidated by reason of any non-compliance by the Commission with subsection (2) above ; nor shall any such transaction be invalidated by reason of any non-compliance by the Commission with the requirement of subsection (3) above that they shall exercise the powers conferred by that subsection with the view there mentioned.

(5) References in this section to disposing of property shall be construed as including references to granting any interest in or rights over it.

**37.—**(1) The Commission does not have power to borrow money except in accordance with sections 58 to 60 below. Restrictions  
on functions of  
Commission.

(2) The Commission in discharging their functions shall comply with such directions as may be given to them by the Secretary of State, but in giving any such direction he shall have regard to the provisions of section 36(2) above.

(3) The Commission shall not without the authority given generally or specially of the Secretary of State—

- (a) transfer the freehold in any land, or grant a lease of any land for a term of more than 99 years, except in the case of a private dwelling and in pursuance of an agreement to make the transfer or grant to the

**PART II**

person occupying or proposing to occupy it as his residence ; or

- (b) develop any land, except in accordance with proposals submitted to the Secretary of State and approved by him.

(4) The Commission shall not have power to dispose by way of gift, mortgage or charge of any land or, except as provided by section 36(3)(b), of any other property.

(5) A transaction between a person and the Commission shall not be invalidated by reason of any failure by the Commission to comply with directions given by the Secretary of State under subsection (2) above, and such a person shall not be concerned to see or enquire whether a direction under that subsection has been given or complied with.

(6) Where the Commission purports to dispose of land by virtue of section 36, then—

- (a) in favour of any person claiming under the Commission, the disposal so purporting to be made shall not be invalid by reason that any authority which is required under subsection (3)(a) had not been given ; and
- (b) a person dealing with the Commission or a person claiming under the Commission shall not be concerned to see or enquire whether any such authority has been given.

(7) References in this section to disposing of land, or of property, shall be construed as including references to granting any interest in or rights over it.

Local  
authorities  
and work for  
Commission.

**38.—**(1) The council of a county or district in which the whole or any part of the area of a new town is situated may, at the request of the Commission and for such consideration and on such other terms and conditions as may be agreed between the council and the Commission—

- (a) do for the Commission any building or other work on land (including land outside the county or district), being work undertaken for the purposes of the Commission's functions in relation to the new town, or any work preliminary to or connected with any such work on land as mentioned above ; or
- (b) allow the Commission to have for the purpose of any such work as mentioned above the services of officers or servants of the council or the use of premises or equipment of the council.

(2) This section applies in relation to a joint board discharging functions of any such council as mentioned above as it applies in relation to the council.



*Transfer of property and undertakings of development corporations, and their dissolution*

PART II

39.—(1) Subject to the provisions of this section, a development corporation may, by an agreement made with any local authority or any statutory undertakers and approved by the Secretary of State with the concurrence of the Treasury— Power of development corporation to transfer undertakings.

(a) transfer to that local authority any part of the undertaking of the corporation, or

(b) transfer to those statutory undertakers any part of the undertaking of the corporation which consists of a statutory undertaking,

upon such terms as may be prescribed by the agreement.

The foregoing provision is without prejudice to the powers of development corporations under this Act to dispose of any of their property, including any trade or business carried on by them.

(2) Before approving an agreement under this section the Secretary of State shall consult with the council of every county and of every district in which the whole or any part of the area of the new town is situated, except, in the case of an agreement made with such a council, the council with whom it is made.

(3) Before approving an agreement under this section for the transfer of a statutory undertaking, the Secretary of State shall publish in the London Gazette, and in one or more newspapers circulating in the area in which the new town is situated, a notice stating that the agreement has been submitted for approval, and describing the general effect of the agreement.

(4) If within 28 days from the publication of the notice in the London Gazette in accordance with subsection (3) above any objection to the agreement is made by any statutory undertakers—

(a) who are carrying on, or are authorised to carry on, a statutory undertaking of a character similar to the statutory undertaking proposed to be transferred by the agreement, and

(b) who do so within the area in which the new town is situated or any adjacent area,

subsection (1) above shall apply in relation to the agreement as if for the reference to the Secretary of State there were substituted a reference to the Secretary of State and the appropriate Minister.

(5) If the Secretary of State is satisfied that it is expedient, having regard to any agreement made or proposed to be made under this section, that the liability of the development cor-

**PART II**

poration in respect of advances made to them under the following provisions of this Act should be reduced, he may, by an order—

(a) made with the Treasury's consent, and

(b) to which section 77(5) below shall apply,

reduce the liability to such extent as may be specified in the order.

(6) The payment of any sums payable by a local authority for the purposes of an agreement under this section shall be a purpose for which that authority may borrow money.

Transfer of  
sewerage  
and sewage  
disposal  
undertakings  
to water  
authorities.

**40.**—(1) A development corporation for a new town who have, in pursuance of an order under section 34 above, been carrying on a sewerage or sewage disposal undertaking may—

(a) by agreement with a water authority, and

(b) with the consent of the Secretary of State and the Treasury,

transfer the whole or any part of the undertaking to that authority.

(2) An order made by the Secretary of State—

(a) may provide for the transfer to a water authority of the whole or any part of a sewerage or sewage disposal undertaking which has, in pursuance of an order under section 34, been carried on by the development corporation ; and

(b) may contain such incidental, consequential and supplemental provisions as the Secretary of State thinks necessary or expedient for the purposes of the order.

(3) The terms on which the whole or any part of an undertaking is transferred by an order under this section—

(a) shall be such as the Secretary of State, with the Treasury's consent, may specify in the order, and

(b) may provide for the payment by the water authority of such sums, to be satisfied in such manner, as may be so specified,

but the total of the sums so paid shall not exceed the total capital cost of the undertaking less depreciation written off.

(4) Before making an order under this section the Secretary of State shall consult with the water authority and with any other authority appearing to him to be concerned.

(5) The Secretary of State shall give notice of any order which he proposes to make under this section—

(a) to the water authority, and

## PART II

(b) to the development corporation,  
and if within 28 days after he has given such notice either of them gives notice to him that they object to the proposal, and the objection is not withdrawn, the order shall be subject to special parliamentary procedure.

**41.—**(1) Where, after consultation with the council of every county and of every district in which the whole or any part of the area of a new town is situated, the Secretary of State is satisfied that the purposes for which the development corporation is established under this Act have been substantially achieved, he shall by order direct—

Transfer of  
property to  
Commission  
and dissolution  
of corporation.

(a) that on such date as may be specified in the order the property of the corporation (other than property excepted under the following provisions of this Act) shall vest in the Commission, and the corporation shall cease to act except for the purpose of taking such steps (if any) as may be authorised or required by the order to dispose of any property so excepted, to prepare its final accounts and report, or otherwise to wind up its affairs; and

(b) that on that date or such later date as may be fixed by or under the order, the corporation shall be dissolved.

(2) With respect to the transfer to the Commission by an order under this section of the property of a development corporation and with respect to matters arising out of the transfer or out of the dissolution of the corporation—

(a) Schedule 10 to this Act has effect; and

(b) the Secretary of State may by order under this section make such further incidental or supplementary provisions as appear to him to be necessary or expedient in relation to any such matter.

(3) Where a development corporation's sewerage or sewage disposal undertaking is transferred to the Commission under this Act, section 40 above shall continue to apply to the undertaking as if the Commission were the development corporation.

(4) Where by virtue of an order under section 6 above a development corporation discharges functions in relation to more than one new town, the Secretary of State may make an order under subsection (1) above in relation—

(a) to that corporation, and

(b) to any of those towns without the other or others,  
as if the corporation were not concerned with the other or others, but without providing for the dissolution of the corporation.

## PART II

(5) In the case of any such order, Schedule 10 shall apply subject to such modifications as may be provided by the order for the purpose in particular of determining what part of the corporation's property, rights, liabilities and obligations is to be transferred to the Commission.

## PART III

## TRANSFER OF PROPERTY TO DISTRICT COUNCILS

*Transfer and management of housing under this Part*

Transfer of housing and associated property to district councils.

42.—(1) A scheme may be made in accordance with and subject to this Part of this Act providing for the transfer from a new town corporation of their interest in any dwellings of a new town and any of their associated property, rights, liabilities and obligations to the council of the district in which the dwellings are situated or any adjoining district.

(2) In this Part, except where the context otherwise requires—

“transfer scheme” means a scheme under this section,

“transferred dwellings” and “transferred land” mean respectively dwellings and land an interest in which is transferred or proposed to be transferred by any transfer scheme,

“transferred”, in relation to other property or any rights, liabilities or obligations, means transferred or proposed to be transferred by any transfer scheme,

and cognate expressions shall be construed accordingly.

(3) The following property, rights, liabilities and obligations of a new town corporation shall be treated for the purposes of this Part as associated with any transferred dwellings in which they have or had an interest—

(a) any interest of the corporation in any land occupied or set aside for occupation or use with a transferred dwelling;

(b) any interest of the corporation in land in the vicinity of transferred dwellings which is held by them for the benefit or use of the occupiers or other inhabitants of those dwellings (rather than the inhabitants of the new town as a whole) or for providing facilities for the inhabitants of those dwellings, and any other property and any rights of the corporation so held;

(c) any property and rights held by the corporation for the administration of an estate comprising any transferred

## PART III

dwelling or other transferred land or the maintenance or service of any transferred dwelling or other transferred land, or otherwise in connection with any transferred property ;

- (d) any rights, liabilities and obligations which the corporation have in connection with any transferred dwelling or other transferred property or rights or in connection with any dwelling of the new town in which the corporation have disposed of their interest ;
- (e) any interest of the corporation in land awaiting development as part of an estate comprising any transferred dwelling or other transferred land and set aside by the corporation for the erection of dwellings or for the erection of any other buildings for any purpose mentioned in paragraph (b) or (c) above ;
- (f) any interest of the corporation in land set aside by them as an open space for the use or enjoyment of the occupiers or other inhabitants of any transferred dwellings ;
- (g) any property, rights, liabilities or obligations of the corporation prescribed by the Secretary of State by order as being of a description which it is appropriate in his opinion to transfer with any property, rights, liabilities or obligations mentioned in any of the foregoing paragraphs.

43.—(1) Where one of the conditions mentioned in subsection (2) below is satisfied with respect to a new town, the Secretary of State may give directions—

Consultation with a view to transfer schemes.

- (a) to the new town corporation for the town, and
- (b) to the council of any district within which any part of the area of the new town is situated,

requiring them to enter into consultations—

- (i) with him,
- (ii) with each other, and
- (iii) with the council of any other district within which any part of the area of the new town or any dwellings of the new town or any associated property is or are situated,

with a view to a transfer scheme being made in respect of the new town by the new town corporation and the council to whom the directions are given.

(2) Those conditions are—

- (a) an order has been made before 15th November 1976 with respect to the new town under section 41 of the

**PART III**  
**1965 c. 59.**

New Towns Act 1965, transferring the property of its development corporation to the Commission ;

- (b) the site of the new town was first designated not less than 15 years before the date of the directions under this section ;
- (c) the Secretary of State has, after consulting the new town corporation for the town concerned, formed the opinion that the development of the new town has been substantially completed or that the carrying out of a transfer scheme would not be detrimental to the laying out of the new town or the completion of its development.

**(3) Where—**

- (a) the site of a new town was first designated not less than 15 years before a request under this subsection, but
- (b) no directions have been given with respect to the new town under this section,

the new town corporation or the council of any district within which any part of the area of the town is situated may request the other and the Secretary of State to enter into consultations, with a view to a transfer scheme being made in respect of the new town by the corporation and the council.

**(4) The corporation and the council and the Secretary of State shall then enter into such consultations—**

- (a) with each other, and
- (b) with the council of any other district within which any part of the area of the new town or any dwellings of the new town or any associated property is or are situated.

Preparation  
 and contents  
 of transfer  
 schemes.

**44.—(1)** If after any consultations under section 43 above with respect to a new town it appears to the Secretary of State that it is expedient for the new town corporation and a district council to whom directions have been given or by or to whom a request has been made under that section to make a transfer scheme, he may, subject to the following provisions of this Part of this Act, give directions as provided in subsection (2) below.

**(2)** The Secretary of State may accordingly direct the corporation and the council to make and submit to him within a specified time—

- (a) a transfer scheme, or
- (b) where one has already been made, a further transfer scheme

with respect to the new town, providing for the transfer to the council—

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- (i) of the corporation's interest in all or any of the dwellings of the new town ; and
- (ii) of any of the corporation's associated property, rights, liabilities and obligations.

(3) In determining what land should or should not be transferred by a transfer scheme the Secretary of State and the parties making the scheme shall have regard to the need for facilitating proper estate management, after the vesting of the transferred land, both of that land and of any other land in its vicinity.

(4) Directions under this section shall, unless they state that in the Secretary of State's opinion it is not appropriate for the corporation and the council concerned to enter into management arrangements with respect to any land in the new town, require the corporation and council to include in the scheme management arrangements, that is, arrangements for the management by the council—

- (a) subject to subsection (5) below, of all those dwellings within their district or any adjoining district which are not transferred, but in which the corporation have an interest for the time being, and
- (b) if the parties think fit, of any other land not transferred in which the corporation have an interest for the time being and which in the interests of proper estate management it is expedient should be managed together with those dwellings.

(5) The parties may exclude any dwelling from management arrangements if in their opinion it is unlikely that the dwelling will be transferred by a subsequent transfer scheme or there are other special reasons for its exclusion.

(6) Directions under this section may—

- (a) specify any dwellings of a new town, or a number or description of such dwellings, which in the Secretary of State's opinion should be excluded from transfer on the ground that the new town corporation's interest in them should be disposed of to some person other than the district council ;
- (b) in the case of directions which do not require the transfer of a new town corporation's interest in all the dwellings of the new town to a district council, specify the dwellings or description of dwellings which must be transferred ; and
- (c) require the inclusion in the transfer scheme of any

## PART III

description of provisions which are authorised to be so included by any enactment contained in this Part other than this subsection.

(7) A transfer scheme shall—

- (a) specify the dwellings and other property transferred, any transferred rights, liabilities and obligations and any land which is the subject of any management arrangements, describing them sufficiently to enable them to be readily identified and, in the case of land and of any rights in, under or over land which it is reasonably practicable to indicate on or by reference to a map, indicating the land itself and the rights on or by reference to a map ;
- (b) confer on the new town corporation a right to nominate tenants of dwellings of the district council (whether transferred or not and including any which are the subject of management arrangements) and specify the number or proportion of dwellings in respect of which the right is so conferred and, where it is so conferred on the Commission, the period for which it is to be exercisable ;
- (c) state the method for determining the payments falling to be made by the district council under section 50(2) below ; and
- (d) contain relevant information about the effect of the scheme on the existing staff of the parties concerned and state proposals for staffing arrangements immediately after the transfer scheme comes into force and the protection of existing staff.

(8) A transfer scheme may include such incidental, consequential, transitional or supplemental provisions as may appear to the parties making the scheme to be necessary or proper.

County councils to be informed of proposed transfer schemes.

45. A new town corporation and any district council to whom directions have been given under section 44 above to make a transfer scheme shall, before submitting it to the Secretary of State under section 46 below—

- (a) inform the council of each county in which there is any land proposed to be transferred by, or to be the subject of management arrangements included in, the scheme, or there is any part of the area of the new town, what that land is ; and
- (b) give each such county council a reasonable opportunity of commenting on the proposed scheme.



**46.—**(1) A new town corporation and any district council to whom directions have been given under section 44 above to make a transfer scheme shall, subject to subsection (2) below, endeavour within the time specified in the directions to agree with each other on the provisions to be included in the proposed scheme and to prepare it and submit it to the Secretary of State. PART III  
Procedure  
for making  
transfer  
schemes.

(2) The Secretary of State may on the application of the new town corporation or any district council to whom directions have been so given extend the time so specified.

(3) Where a proposed transfer scheme is submitted to the Secretary of State by a new town corporation and a district council in pursuance of directions under section 44, then—

(a) if it appears to the Secretary of State that the scheme substantially complies with the directions, he may, with the Treasury's consent but subject to subsection (7) below, approve the scheme, with or without modifications ; or

(b) he may in any event reject it.

(4) Where on consideration of any such scheme so submitted the Secretary of State approves the scheme without modifications or rejects it, he shall notify the corporation and council concerned of his decision.

(5) Where on consideration of any such scheme so submitted the Secretary of State proposes to approve it with modifications, he shall notify the corporation and council concerned of the modifications which he proposes to make and shall give them an opportunity to comment on the proposed modifications and send them a copy of the scheme as finally approved.

(6) Where—

(a) any such scheme is not submitted to the Secretary of State within the requisite time (that is, the time specified in the directions under section 44 or that time as extended under this section), or

(b) the Secretary of State rejects any such scheme submitted to him,

he may himself, with the Treasury's consent, make a transfer scheme which, subject to subsection (8) below, must be of a description which he has directed the corporation and council concerned to make ; but he shall—

(i) first send them a draft of the scheme, and give them an opportunity of commenting on the draft, and

(ii) also send them a copy of the scheme as finally made.

## PART III

## (7) If—

- (a) any management arrangements included in a proposed transfer scheme submitted to the Secretary of State in pursuance of directions under section 44 appear to him to be unsatisfactory, or
- (b) a proposed transfer scheme so submitted which was required by any such directions to include management arrangements fails to include them,

he may, instead of approving the scheme (where he has power to do so) or rejecting it, with the Treasury's consent, refer it back to the corporation and council concerned and give them directions under section 44 to make and submit the scheme to him again within a specified time without any management arrangements.

## (8) If—

- (a) no proposed transfer scheme is submitted to the Secretary of State within the requisite time, or
- (b) he rejects a proposed transfer scheme so submitted which was required by directions under section 44 to include management arrangements and the ground of the rejection is that the scheme does not include any management arrangements or that any such arrangements so included appear to him to be unsatisfactory,

he may exercise his power of making a transfer scheme under subsection (6) above without including any management arrangements.

Effect of  
transfer  
schemes.

**47.—(1) A transfer scheme shall—**

- (a) by virtue of this provision and without more, vest in the district council concerned the interest of the new town corporation in the transferred land and any of the corporation's rights, liabilities and obligations relating to that land and shall do so on a date specified in the scheme, being 1st April in the year in question ; and
- (b) so far as it relates to any other matter, come into force on that date, except so far as may be otherwise provided by the scheme.

**(2) A transfer scheme approved or made by the Secretary of State shall—**

- (a) so far as it transfers to a district council any land of the new town corporation or any of the corporation's rights, liabilities or obligations relating to land, have effect as an instrument under seal made between the corporation and the council,

## PART III

- (b) so far as it relates to any other matter, have effect as an agreement for valuable consideration made by the corporation and council concerned,

and may be enforced accordingly, but, subject to subsection (3) below, may only be varied with the Secretary of State's approval.

(3) The Secretary of State may, on or at any time after notifying the corporation or council concerned of his approval of a transfer scheme without modifications or, as the case may be, sending them a copy of the scheme as finally approved, give directions with the Treasury's consent that the corporation and council may vary the scheme in a specified manner, or vary any specified provisions or any specified description of provisions of the scheme, without his approval.

(4) Any power of varying a transfer scheme does not include power—

- (a) to vary it so as to affect any title to land or any rights, liabilities or obligations relating to land ; or
- (b) to include management arrangements in a scheme approved or made under section 46 above without management arrangements.

(5) Where any proposed variations of a transfer scheme are submitted to the Secretary of State for his approval under subsection (2) above, he may, with the Treasury's consent, approve them with or without modifications or he may reject them, and shall in any event notify the corporation and council concerned of his decision.

(6) Where an interest in buildings or other land is vested by a transfer scheme in a district council or buildings are or other land is managed by such a council in pursuance of management arrangements included in such a scheme, the buildings or other land shall be treated as having been provided or, as the case may be, acquired or appropriated under Part V of the Housing Act 1957, but—

- (a) the Secretary of State may direct that any land shall not be so treated if, in his opinion, it is inappropriate to do so ; and
- (b) in relation to land so managed the council shall not have the powers conferred by sections 104 and 105 of that Act (disposal of houses so provided and land so acquired or appropriated).

(7) Where an interest in land is so vested, any installations on other land which are transferred by the scheme and are of a kind which could have been provided under Part V of the Housing Act 1957 shall, unless the Secretary of State otherwise directs, be treated as having been so provided.

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(8) Without prejudice to subsection (6) above, where land is managed by a district council in pursuance of management arrangements, the council shall have all the powers, rights, liabilities and obligations of the new town corporation relating to the land, except—

- (a) the power to hold the corporation's interest in the land ;
- (b) any obligation to make repayments of capital or payments of interest in respect of loans ;
- (c) where the corporation in question are a development corporation, any powers, rights, liabilities and obligations which are certified by the corporation as being appropriate for them to retain in order to enable them to complete their function of laying out and developing the new town.

(9) Where a person enters into a transaction with a district council relating to a power, right, liability or obligation certified by the corporation concerned under subsection (8)(c) above and with reasonable cause believes that the council have that power, right, liability or obligation, then—

- (a) the council shall be taken to enter into, and to be authorised by the corporation to enter into, the transaction as the corporation's agent ; and
- (b) the corporation shall be entitled to be indemnified by the council for any loss suffered by the corporation as a result of their being taken, by virtue of paragraph (a) above, to be a principal in respect of any transaction.

(10) As soon as reasonably practicable after being notified that a transfer scheme has been approved or made by the Secretary of State, the corporation and council concerned shall—

- (a) each deposit at their respective offices and at other convenient places in the town and district respectively an extract of the scheme (including the map) which specifies the transferred land, any transferred rights, liabilities or obligations relating to that land and any land which is the subject of management arrangements ; and
- (b) keep the extract so deposited for at least 6 weeks ; and
- (c) while it is so deposited, permit any interested person to inspect and take copies of the extract, free of charge, at all reasonable hours.

Nomination  
of tenants for  
transferred  
and managed  
dwellings.

48.—(1) A new town corporation's right of nominating tenants under a transfer scheme shall, subject to subsection (2) below, be such right as may be agreed between the parties to the scheme, or (in the case of a scheme made by the Secretary of

State under section 46(6) above) as may be determined by him, to nominate tenants for a number or proportion of the dwellings provided (or treated by section 47(6) above as provided) by the district council concerned under Part V of the Housing Act 1957 c. 56. 1957.

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(2) Subject to subsection (3) below, the corporation's right of nominating tenants shall be exercisable during the following period or periods—

- (a) where the corporation are a development corporation, a period beginning with the date on which their interest in the transferred dwellings vests in the district council and ending with the date which is the transfer date for the purposes of Schedule 10 to this Act ;
- (b) where the corporation are the Commission and the dwellings in question were transferred from the development corporation to the district council, a period of 5 years beginning with that transfer date ;
- (c) where the corporation are the Commission and the dwellings in question were transferred from them to the district council, the period of 5 years beginning with the date on which the Commission's interest in the transferred dwellings vests in the district council.

(3) The Commission and the district council concerned may, with the Secretary of State's consent, agree to substitute a less period for the period of 5 years specified in paragraph (b) or, as the case may be, (c) of subsection (2) above.

49. If after consultations with a new town corporation and a district council under section 43 above the Secretary of State determines not to give any directions under section 44 above with respect to a new town—

Decision not to require transfer scheme.

- (a) he shall notify the corporation and the council of his determination and the reasons for it ;
- (b) he shall keep the development of the new town under review for the purposes of considering whether or not to give directions under section 43 with respect to further consultations under subsection (1) of that section ; and
- (c) the corporation or the council of any district within which any part of the area of the new town is situated may at any time after 3 years from the notification of the original determination make a request under section 43(3) with respect to such consultations as are mentioned in that subsection, and that subsection shall apply accordingly as it applies in a case where no directions have been given under section 43.

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*Financial arrangements as to transfer schemes*Financial  
arrangements.

**50.**—(1) The following provisions of this section shall have effect where the interest of a new town corporation in any land is vested by a transfer scheme in a district council or land in which such a corporation have an interest is managed in pursuance of management arrangements included in such a scheme.

(2) In each financial year the council shall pay the corporation a sum determined in accordance with a method specified in the scheme to be equal as nearly as practicable to the aggregate of the amounts payable by the corporation by way of repayment of capital and payment of interest in that year in respect of the relevant portion (for the time being determined) of the corporation's total capital loan debt (so determined).

1972 c. 47. (3) For the purposes of paragraph 3(1)(a) of Schedule 1 to the Housing Finance Act 1972 (debts to Housing Revenue Account to include certain loan charges) the housing element of any sum paid in any financial year by the council under subsection (2) above shall be treated as a loan charge which they are liable to pay for that year in respect of money borrowed by them for the purpose of providing housing accommodation under Part V of the Housing Act 1957.

1957 c. 56. (4) For the purposes of paragraph 2(1) of Schedule 1 to the Housing Rents and Subsidies Act 1975 (new capital costs element of housing subsidy) the housing element of the relevant portion of the corporation's total capital loan debt shall be treated as capital costs incurred by the district council.

1975 c. 6. (5) The Secretary of State—  
(a) may, as respects the financial year at the beginning of which the corporation's interest in the transferred dwellings vests in the council, pay the council an increased basic element of housing subsidy under that Act of 1975 or, if the council would not be entitled to the basic element for that year, treat them as entitled to it;  
(b) if after the beginning of that year a particular parcel of land is managed by the council for the first time in pursuance of management arrangements, may, as respects the next financial year falling wholly after that event, increase the basic element.

(6) Any amount paid to the council by virtue of subsection (5) above shall be such as appears to the Secretary of State to be appropriate; and if in any financial year the council receives any amount by way of basic element or of an increase in that element by virtue of that subsection, they shall be entitled, subject to paragraph 8 of Schedule 1 to that Act of 1975 (Secretary of State's power to reduce or discontinue a council's basic element), to receive that amount for each later financial year.

(7) In this section “the relevant portion of the corporation’s total capital loan debt” means such portion of that debt as the Secretary of State determines—

(a) in the case of transferred buildings or other transferred land, it is reasonable to attribute to the provision of the buildings or provision or acquisition of the land and the provision of services in respect of such buildings or land,

(b) in the case of buildings which are or other land which is managed by a district council in pursuance of management arrangements, it is reasonable to attribute to the provision of the buildings (including buildings for the time being in course of erection) or provision, acquisition or development of the land (including land for the time being in course of development) and the provision of services in respect of the buildings or land,

and “housing element”, in relation to any sum or any portion of a debt, means so much of the sum or portion as is determined by the Secretary of State to relate to anything treated by virtue of section 47(6) or (7) above as having been provided, acquired or appropriated under Part V of the Housing Act 1957.

1957 c. 56.

In this subsection “services” means roads, electricity, gas, water, sewerage and other services.

(8) The power conferred by virtue of sections 152(3) and 153(4) of the Housing Act 1980 to bring into operation Schedule 26 to that Act (repeals) has effect as if that Schedule included references to subsections (4) to (6) above (which correspond to subsections (4) to (6) of section 9 of the New Towns (Amendment) Act 1976).

1980 c. 51.

1976 c. 68.

This subsection is without prejudice to section 17 of the Interpretation Act 1978.

1978 c. 30.

**51.—**(1) Where it appears to the Secretary of State—

Grants to district councils.

(a) that the transfer of buildings or other land to a district council by a transfer scheme, or

(b) that the inclusion of any land in management arrangements,

imposes or will impose a financial burden on the council, he may for the purpose of relieving that burden (whether wholly or partly) make grants to the council of amounts and for a period determined by him with the Treasury’s consent.

(2) The council shall carry any such grants to the credit of their Housing Revenue Account.

## PART III

*Information and determination of disputes as to transfer schemes*

Information  
for occupiers.

**52.—**(1) A new town corporation shall, as soon as practicable after directions have been given to them under section 44 above to make a transfer scheme, take such steps as they consider appropriate for drawing the attention of occupiers of buildings and other land in any area which is likely to be affected by the scheme to the possibility of the scheme and the way in which the scheme is likely to affect them.

(2) As soon as practicable after a transfer scheme is approved or made by the Secretary of State the new town corporation whose land is transferred by the scheme or is the subject of management arrangements included in the scheme shall take such steps as they consider appropriate to secure that all occupiers of the land are informed of the way in which they are affected by the scheme or arrangements.

(3) As soon as practicable after a transfer scheme is approved or made by the Secretary of State any district council to whom land is transferred by the scheme or by whom any land is to be managed in pursuance of management arrangements included in the scheme shall publish in at least one local newspaper circulating in the area of the new town a notice which—

- (a) states that the scheme has been approved or made and the date on which it was approved or made; and
- (b) specifies at least one place in that area where a document describing the scheme's provisions and identifying the property affected by the scheme or arrangements can be inspected.

Secretary of  
State's power  
to determine  
disputes.

**53.** In the event of a dispute between a new town corporation and a district council as to the preparation, contents or implementation of a transfer scheme or any arrangements or agreement required or authorised to be made by this Part of this Act, either of them may refer the dispute to the Secretary of State, who may determine the dispute and whose determination shall be final.

*Staff in relation to transfer schemes*

Protection of  
employees.

**54.—**(1) The Secretary of State shall make regulations containing such provisions as appear to him to be appropriate for the protection of the interests of any person who, on or after the approval or, as the case may be, making of a transfer scheme is in any employment with the new town corporation or district council concerned (the old employment) and is affected by the scheme.

(2) As regards a person who as a result of a transfer scheme is, after the scheme comes into force, in new employment, that



is, employment (whether with another of the parties to the scheme or the same employer) which is different from his old employment, regulations under this section shall include provision—

PART III

(a) securing that, so long as he continues in the new employment and until he is served with a statement in writing referring to the regulations and specifying new terms and conditions of employment, he enjoys terms and conditions of employment not less favourable, taken as a whole, than those which he enjoyed immediately before the termination of the old employment ;

(b) securing that the said new terms and conditions are such that—

(i) so long as he is engaged in duties reasonably comparable to those in which he was engaged immediately before the termination of the old employment, the scale of his salary or remuneration, and

(ii) the other terms and conditions of his employment,

are not less favourable, taken together, than those which he enjoyed immediately before the termination of the old employment.

(3) Regulations under this section may include provision for the determination of questions arising under the regulations.

(4) The Secretary of State shall make regulations under section 24 of the Superannuation Act 1972 (compensation for loss of office, etc., for persons in local government service, etc.) with respect to all persons to whom subsection (1) above applies and who suffer loss of employment, or loss or diminution of emoluments, as a result of a transfer scheme.

(5) For the purposes of Schedule 13 to the Employment Protection (Consolidation) Act 1978 (as it applies for the purposes of computing an employee's period and continuity of employment for the purposes of that Act and any other enactment) in its application to a person who as a result of a transfer scheme is, after the scheme comes into force, in new employment with a different employer—

(a) the period of his employment in the old employment shall count as a period of employment in the new employment ; and

(b) the change of employment shall not break the continuity of the period of employment.

(6) For the purposes of section 94 of the Employment Protection (Consolidation) Act 1978 (change of ownership of

## PART III

business), in its application to such a person, the transfer of any land by a transfer scheme or the inclusion in such a scheme of management arrangements for any land shall (if it would not otherwise be so treated) be treated as a change occurring in the ownership of a business.

New Towns  
Staff  
Commission.

**55.**—(1) The New Towns Staff Commission continues in being for the purpose of considering the general effect of transfer schemes on staff employed by new town corporations or district councils and advising the Secretary of State on the arrangements necessary to safeguard the interests of any such staff likely to be affected by such schemes.

(2) If the Secretary of State accepts any advice given to him by the New Towns Staff Commission under this section which he thinks should be brought to the attention of all the relevant authorities (that is, every new town corporation and the council of every district within which any part of the area of a new town is situated) or of one or some of those authorities, he shall notify that Commission of his acceptance and shall direct them to take such steps as they consider appropriate to bring the advice and its acceptance to the attention of all the relevant authorities or, as the case may be, such of them as may be specified in the direction.

(3) The Secretary of State may—

- (a) give directions to the New Towns Staff Commission with respect to their procedure ;
- (b) give directions to any new town corporation or district council with respect to the furnishing of any information requested by that Commission ;
- (c) give directions to any relevant authority whose attention has been drawn to any advice under subsection (2) above requiring them to take such steps as may be specified in the directions to implement any of that advice so specified ;
- (d) pay any member of that Commission such remuneration as the Secretary of State may determine with the approval of the Minister for the Civil Service ;
- (e) defray any expenses incurred with the approval of the Secretary of State by that Commission in the performance of their functions ; and
- (f) wind up that Commission in such manner and at such time as the Secretary of State thinks fit.

*Provisions supplemental to this Part*

Development  
Board for  
Rural Wales.  
1976 c. 75.

**56.**—(1) This Part of this Act applies in relation to the Development Board for Rural Wales ("the Board") and any new town within the area for which the Board is responsible under the Development of Rural Wales Act 1976 as it applies

to a new town corporation for any new town and that town, subject to the modifications specified in this section.

PART III

(2) A dwelling is a "dwelling of a new town" if it is—

- (a) a dwelling (whether or not in the area of the new town concerned) erected, adapted or acquired by the Board for occupation as a dwelling, and
- (b) so erected, adapted or acquired for the purpose of developing any area of a new town or new town situated within the area for which the Board is responsible under that Act of 1976.

(3) A transfer scheme shall, in addition to specifying under section 44(7)(b) above the number or proportion of dwellings in respect of which the right to nominate tenants is conferred by the scheme, specify the period for which the right is to be exercisable.

(4) The Board's right under subsection (3) above shall only be exercisable during the period of 5 years beginning with the date on which the Board's interests in the transferred dwellings vest in the district council or such less period as may, with the Secretary of State's consent, be agreed between the Board and the council.

(5) In relation to section 47 above—

- (a) the powers, rights, liabilities and obligations of the Board which are excepted by subsection (8) of that section from those which a district council are to have in relation to land managed under a transfer scheme include any powers, rights, liabilities and obligations which are certified by the Board as being appropriate for the Board to retain to enable them to complete their function of laying out and developing the new town; and
- (b) subsection (9) of that section shall apply as if the certificate had been given under subsection (8)(c).

**57.** In this Part of this Act, except where the context otherwise requires—

Interpretation  
of Part III.

"dwelling" means any building or part of a building occupied, or erected or adapted for occupation, as a dwelling or as a hostel (including any land belonging to it or usually enjoyed with it);

"dwelling of a new town" means any dwelling (whether or not in the area of the new town concerned) erected, adapted or acquired by the new town corporation for occupation as a dwelling;

## PART III

“management arrangements” means any arrangements made in pursuance of a requirement imposed by virtue of section 44(4) above ;

“new town corporation” means a development corporation or the Commission ;

“transfer scheme” and other expressions relating to transfer have the meanings given to them by section 42 above.

## PART IV

## FINANCE

*General financial provisions*

Advances  
and grants to  
development  
corporations  
and  
Commission.

**58.—**(1) For the purpose of enabling a development corporation—

(a) to meet expenditure properly chargeable to capital account (including the provision of working capital), or

(b) to make good to revenue account sums applied in meeting liabilities so chargeable,

the Secretary of State may (subject to section 60 below) make to the corporation advances repayable over such periods and on such terms as may be approved by the Treasury.

(2) For the purpose of enabling a development corporation to meet any other expenditure the Secretary of State may, out of moneys provided by Parliament, make grants to the corporation of such amount as may be approved by the Treasury.

(3) It shall be a condition of the making of advances to a development corporation under subsection (1) above that the proposals for development submitted to the Secretary of State under section 7 above shall be approved by the Secretary of State with the Treasury's concurrence as being likely to secure for the corporation a return which is reasonable, having regard to all the circumstances, when compared with the cost of carrying out those proposals.

(4) For the purpose of enabling the Commission to meet any housing expenditure the Secretary of State may, out of moneys provided by Parliament, make grants to the Commission of such amount as may be approved by the Treasury.

(5) For the purpose of enabling the Commission—

(a) to meet liabilities properly chargeable to capital account (including the provision of working capital), or

(b) to make good to revenue account sums applied in meeting liabilities so chargeable,

the Secretary of State may (subject to section 60) make to the Commission advances repayable over such period and on such terms as may be approved by the Treasury.

PART IV

(6) The Secretary of State may also advance to the Commission any sums required by them to meet a deficit on revenue account, and any such advance shall be repayable over such period and shall be made on such terms as may be approved by the Treasury; but the sum of the amounts outstanding at any one time in respect of the principal of the sums advanced—

(a) before the commencement of the New Towns Act 1965, 1965 c. 59.  
under section 3(2) of the New Towns Act 1959, 1959 c. 62.

(b) before the commencement of this Act, under section 42(5) of the New Towns Act 1965, and

(c) after the commencement of this Act, under this subsection (which corresponds to those subsections),

shall not exceed £1,000,000.

59.—(1) A development corporation or the Commission may borrow temporarily, by way of overdraft or otherwise, either—

(a) in sterling from the Secretary of State, or

(b) with the Secretary of State's consent and the Treasury's approval, or in accordance with any general authority given by the Secretary of State with the Treasury's approval, in any currency from any other person,

such sums as the development corporation or the Commission (as the case may be) may require for meeting their obligations or performing their functions.

(2) With the consent of the Secretary of State and the Treasury's approval, a development corporation or the Commission may borrow, otherwise than by way of temporary loan—

(a) in any currency from the Commission of the European Communities or from the European Investment Bank, or

(b) in any currency other than sterling from any person, other than the Secretary of State and the bodies mentioned in the preceding paragraph,

such sums as they may require for enabling them to meet expenditure properly chargeable to capital account (including the provision of working capital), or to make good to revenue account sums applied in meeting liabilities so chargeable.

## PART IV

Limit on  
borrowing by  
development  
corporations  
and  
Commission.  
1946 c. 68.  
1965 c. 59.

**60.** The sum of the amounts outstanding at any one time in respect of the principal of the following sums—

(a) the sums advanced to development corporations before the commencement of this Act under section 12(1) of the New Towns Act 1946 in its application to England and Wales or under section 42(1) of the New Towns Act 1965, and, after the commencement of this Act, under section 58(1) above, (which corresponds to those subsections),

1968 c. 16.

(b) the sums advanced to development corporations before the commencement of the New Towns (Scotland) Act 1968 under that section 12(1) in its application to Scotland (to which section 37(1) of that Act of 1968 corresponds) and, after the commencement of that Act of 1968, under that section 37(1);

1959 c. 62.

(c) the sums advanced to the Commission before the commencement of this Act under section 3(1) of the New Towns Act 1959 or under section 42(4) of that Act of 1965, and, after the commencement of this Act, under section 58(5) above (which corresponds to those subsections), and

(d) the sums borrowed (whether by development corporations or by the Commission) before the commencement of this Act under section 42A of that Act of 1965 and, after the commencement of this Act, under section 59 above (which corresponds to that section), or under section 37A of that Act of 1968,

shall not exceed £3,625 million or such greater sum not exceeding £4,000 million as the Secretary of State may by order (to which section 77(5) below shall apply) specify.

Provisions  
supplemental  
to s. 58.

**61.—(1)** The Treasury may issue to the Secretary of State out of the National Loans Fund such sums as are necessary to enable him to make advances—

(a) to a development corporation under section 58(1) above ;  
or

1968 c. 13.

(b) to the Commission under section 58(5) or (6),  
at a rate of interest to be fixed in accordance with the National Loans Act 1968.

(2) Any sums received by the Secretary of State by way of repayment of or interest on advances under section 58(1), (5) or (6) shall be paid into the National Loans Fund.

(3) The Secretary of State shall lay before each House of Parliament a statement of any sums payable to him by way of repayment of or interest on any such advances and not duly received by him.

**62.—**(1) The Treasury may guarantee in such manner and on such conditions as they may think fit— PART IV  
Treasury  
guarantees.

(a) the repayment of the principal of, and

(b) the payment of interest on,

any sums which a development corporation or the Commission borrow under this Act from a person other than the Secretary of State.

(2) Immediately after a guarantee is given under this section, the Treasury shall lay a statement of the guarantee before each House of Parliament.

(3) Where any sum is issued for fulfilling a guarantee so given, the Treasury shall, as soon as possible after the end of each financial year—

(a) beginning with that in which the sum is issued, and

(b) ending with that in which all liability in respect of the principal of the sum, and in respect of interest on it, is finally discharged,

lay before each House of Parliament a statement relating to that sum.

(4) Any sums required by the Treasury for fulfilling a guarantee under this section shall be charged on and issued out of the Consolidated Fund.

(5) If any sums are issued in fulfilment of a guarantee given under this section in respect of money borrowed by a development corporation or by the Commission, the development corporation or the Commission (as the case may be) shall make to the Treasury, at such times and in such manner as the Treasury may from time to time direct—

(a) payments, of such amounts as the Treasury may so direct, in or towards repayment of the sums so issued; and

(b) payments of interest on what is outstanding for the time being in respect of amounts so issued at such rate as the Treasury may so direct.

(6) Any sums received under subsection (5) above by the Treasury shall be paid into the Consolidated Fund.

#### *Payments to Secretary of State*

**63.—**(1) The Secretary of State may direct a development corporation or the Commission to pay to him, on the date specified in the direction, such sum as is so specified, and any sum so received by him shall, subject to section 66(2) below, be paid into the Consolidated Fund. Secretary of  
State's general  
power.

(2) Before giving a direction under this section the Secretary of State shall consult the corporation or the Commission, as the case may be.

## PART IV

1961 c. 33.

1963 c. 51.

1968 c. 16.

Disposal of  
land to  
comply with  
direction  
under s. 63.

(3) The debt shall carry interest at the rate for the time being in force under section 32 of the Land Compensation Act 1961 (or, in Scotland, section 40 of the Land Compensation (Scotland) Act 1963) from the date specified in the direction until payment.

(4) In the application of this section and sections 64 and 66 below to Scotland, "development corporation" means the same as in the New Towns (Scotland) Act 1968.

**64.**—(1) Where, in order to comply with a direction under section 63 above, the corporation or Commission considers it desirable to dispose of any land, it may do so by virtue of this section.

(2) The power of disposal by virtue of this section may be exercised notwithstanding anything in this Act (or, in Scotland, the New Towns (Scotland) Act 1968) but must be exercised in accordance with subsections (3) to (5) below.

(3) The power shall not be exercised so as to dispose of land by way of mortgage (or, in Scotland, standard security) or charge.

(4) Without the Secretary of State's consent (given generally or specially), the power shall not be exercised so as to transfer the freehold of land or to grant a lease of land for a term of more than 99 years.

In the application of this section to Scotland this subsection has no effect.

(5) In exercising the power a corporation and the Commission shall comply with such directions as the Secretary of State may give to them—

(a) for restricting the exercise of the power ; or

(b) for requiring the power to be exercised in any manner specified in the directions.

(6) Before giving a direction under subsection (5) above the Secretary of State shall consult the corporation or the Commission, as the case may be, unless he is satisfied that because of urgency consultation is impracticable.

(7) Where a corporation or the Commission purports to dispose of land by virtue of this section, then—

(a) in favour of a person claiming under the corporation or Commission, the disposal so purporting to be made shall not be invalid by reason that any consent of the Secretary of State required under this section has not been given or that any direction of his given under this section has not been complied with ; and

(b) a person dealing with or claiming under the corporation or Commission shall not be concerned to see or



enquire whether any such consent has been given or whether any such direction has been given or complied with.

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(8) References in this section to disposing of land include references to granting an interest in or over land.

**65.**—(1) This section applies where it appears to the Secretary of State, after consultation with the Treasury, and with the Commission or any development corporation, as the case may be, that the Commission or that development corporation have a surplus whether on capital or on revenue account after making allowance by way of transfer to reserve or otherwise for their future requirements, including, in the Commission's case, any contributions required under section 36(3)(b) above. Disposal of surplus funds.

(2) The Commission or that corporation, as the case may be, shall, if the Secretary of State after such consultation so directs, pay to the Secretary of State such sum not exceeding the amount of that surplus as may be specified in the direction, and any sum so received by him shall be paid into the Consolidated Fund, subject to section 66(2) below.

**66.**—(1) The whole or part of any payment made to the Secretary of State under section 63 or section 65 above shall, if the Secretary of State with the Treasury's approval so determines, be treated— Payments under ss. 63. and 65 treated as repayments.

(a) as made by way of repayment of such part of the principal of advances—

(i) under section 58(1) above, in the case of a development corporation, or

(ii) under section 58(5) and (6), in the case of the Commission, and

(b) as made in respect of the repayments due at such times, as may be so determined.

In the application of this subsection to Scotland, for the reference to section 58 of this Act substitute section 37(1) of the New Towns (Scotland) Act 1968. 1968 c. 16.

(2) Any sum treated under subsection (1) as a repayment of a loan shall be paid by the Secretary of State into the National Loans Fund.

## PART V

### GENERAL AND SUPPLEMENTAL

#### *Accounts and audit*

**67.**—(1) The Commission and every development corporation— Accounts of Commission and development corporations.

(a) shall keep proper accounts and other records in relation to those accounts, and

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- (b) shall respectively prepare in respect of each financial year annual accounts in such form as the Secretary of State may with the Treasury's approval direct, being, in the Commission's case, in a form which will show their financial position both generally and in relation to each of their towns,

and directions under this subsection may make different provisions as regards the Commission and as regards a development corporation.

(2) The financial year of the Commission and of every development corporation shall begin with 1st April, and references to a financial year in relation to the Commission or a development corporation shall be construed accordingly.

(3) Without prejudice to the generality of subsection (1) above, the Secretary of State may, with the Treasury's approval, give directions to the Commission or a development corporation as to—

- (a) the kind or number of accounts which they are to keep,
- (b) the amounts which are or are not to be credited or debited to any account,
- (c) the manner of rectifying any account,
- (d) provision for working balances,

and any such direction may be a general direction or a direction for a particular case.

## Audit.

**68.**—(1) The accounts of the Commission and of every development corporation shall be audited by an auditor to be appointed annually by the Secretary of State in relation to the Commission or corporation.

(2) No person shall be qualified to be so appointed auditor unless he is a member of one or more of the following bodies—

- the Institute of Chartered Accountants in England and Wales ;
- the Institute of Chartered Accountants of Scotland ;
- the Association of Certified Accountants ;
- the Institute of Chartered Accountants in Ireland ;
- any other body of accountants established in the United Kingdom and for the time being recognised for the purposes of paragraph (a) of section 161(1) of the Companies Act 1948 by the Secretary of State.

1948 c. 38.

(3) As soon as the annual accounts of the Commission or a development corporation for any financial year have been audited, the Commission or corporation, as the case may be, shall send to the Secretary of State a copy of the accounts prepared by them for that year in accordance with this section, together with a copy of any report made by the auditor on those accounts.

**69.**—(1) The Secretary of State shall prepare in respect of each financial year, in such form and manner and at such times as the Treasury may direct—

PART V  
Secretary of  
State's  
accounts.

(a) an account of the sums issued to him and advanced to the Commission under this Act, of sums received by him from the Commission and paid into the National Loans Fund in respect of the principal of and interest on sums so advanced, and of sums received by him from the Commission under section 65 above, and

(b) an account of the sums issued to him and advanced to a development corporation under this Act and of sums received by him from the development corporation and paid into the National Loans Fund in respect of the principal of and interest on sums so advanced,

and directions under this subsection may make different provisions as regards the Commission and as regards a development corporation.

(2) On or before 30th November in each year, the Secretary of State shall transmit to the Comptroller and Auditor General—

(a) the account prepared by the Secretary of State under subsection (1)(a) above in respect of the last foregoing financial year, and

(b) the account prepared by him under subsection (1)(b) in respect of the last foregoing financial year,

and the Comptroller and Auditor General shall examine and certify every account so prepared by the Secretary of State and lay before each House of Parliament copies of each such account together with his report on it.

#### *Reports and information*

**70.** As soon as possible after the end of each financial year—

Reports.

(a) the Commission shall make to the Secretary of State a report dealing generally and in relation to each of their towns with their operations during that year, and shall include in the report a copy of their audited accounts for that year,

(b) every development corporation shall make to the Secretary of State a report dealing generally with the operations of the corporation during that year, and shall include in the report a copy of their audited accounts for that year,

and the Secretary of State shall lay a copy of every such report before each House of Parliament.

**71.**—(1) Without prejudice to the requirements imposed by section 70 above, the Commission and every development corporation shall respectively provide the Secretary of State with

Information.

## PART V

such information relating to their undertaking as the Secretary of State may from time to time require.

(2) For that purpose the Commission and every development corporation—

- (a) shall permit any person authorised by the Secretary of State in that behalf to inspect and copy the accounts, books, documents or papers of the Commission or corporation, as the case may be ; and
- (b) shall afford such explanation of those accounts, books, documents or papers as that person or the Secretary of State may reasonably require.

*Miscellaneous*

Application  
and exclusion  
of certain  
enactments.

**72.—**(1) Any property—

- (a) vested in any person by virtue of an order under section 40 or section 41 above transferring that property from a development corporation or from the Commission, or

- (b) of a new town corporation vested in a district council by a transfer scheme under Part III of this Act,

shall not be treated as so vested by way of sale for the purpose of section 12 of the Finance Act 1895 (stamp duty on certain statutory transfers by way of sale).

1895 c. 16.

1946 c. 49.

(2) For the purposes of section 6(3) of the Acquisition of Land (Authorisation Procedure) Act 1946 (which relates to the acquisition of inalienable land) this Act shall be deemed to have been passed before the commencement of that Act.

Rights of  
entry.

**73.—**(1) Where an authority, being either a development corporation or a local highway authority or the Secretary of State, are—

- (a) authorised to acquire any land compulsorily under this Act, or

- (b) have under consideration the purchase of any land compulsorily under this Act,

any person, being an officer of the Valuation Office or a person authorised in writing by such authority, may at any reasonable time enter upon the land for the purpose of surveying it or estimating its value.

(2) Any person, being an officer of the Valuation Office or a person authorised in writing by the Secretary of State, may at any reasonable time enter upon any land for the purpose of surveying it or estimating its value in connection with any proposals relating to the land submitted or to be submitted under section 7(1) above.

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(3) A person authorised under the foregoing provisions of this section to enter upon any land shall, if so required, produce evidence of his authority before entering, and shall not demand admission as of right to any land which is occupied unless 24 hours' notice of the intended entry has been given to the occupier.

(4) Any person who obstructs a person acting in the exercise of his powers under this section shall be liable on summary conviction to a fine not exceeding £50.

**74.**—(1) The Secretary of State or any other Minister may, for the purposes of the exercise of any of his functions under this Act, and subject to the following provisions of this section, cause to be held—

- (a) such local inquiries as are directed by this Act, and
- (b) such other local inquiries as he may think fit.

(2) The following subsections of section 250 of the Local Government Act 1972 apply to inquiries held in pursuance of this Act as they apply to inquiries held under that section—

- (a) subsections (2), (3) and (5) of that section (which relate to the giving of evidence at, and the costs of parties to, local inquiries), and
- (b) except as regards an inquiry held for the purposes of the exercise of the Secretary of State's functions under any of the provisions of this Act specified in subsection (3) below, subsection (4) of that section (which relates to recovery of the costs of holding local inquiries).

(3) The provisions of this Act referred to in subsection (2) above are—

- (a) sections 37, 40, 41 and 58(5) and (6);
- (b) section 65 so far as that section applies to the disposal of surplus funds of the Commission;
- (c) Schedules 9 and 10.

(4) This section is without prejudice to any other enactment authorising the holding of local inquiries.

**75.**—(1) Subject to the provisions of this section, any notice or other document required or authorised to be served or given under this Act may be served or given either—

- (a) by delivering it to the person on whom it is to be served or to whom it is to be given; or
- (b) by leaving it at the usual or last known place of abode of that person, or, in a case where an address for

## PART V

service has been given by that person, at that address ;  
or

- (c) by sending it in a prepaid registered letter, or by the recorded delivery service, addressed to that person at his usual or last known place of abode, or, in a case where an address for service has been given by that person, at that address ; or
- (d) in the case of an incorporated company or body, by delivering it to the secretary or clerk of the company or body at their registered or principal office, or sending it in a prepaid registered letter, or by the recorded delivery service, addressed to the secretary or clerk of the company or body at that office.

(2) Where the notice or document is required or authorised to be served on or given to any person as having an interest in premises, and the name of that person cannot be ascertained after reasonable inquiry, or where the notice or document is required or authorised to be served on any person as an occupier of premises, the notice or document shall be taken to be duly served if—

- (a) being addressed to him by the description of “the owner”, or “the occupier”, as the case may be, of the premises (describing them), it is delivered, left or sent in the manner specified in subsection (1)(a), (b) or (c) above ; or
- (b) being addressed to him either by name or in accordance with paragraph (a) above, and marked in such manner as may be prescribed for securing that it shall be plainly identifiable as a communication of importance—
  - (i) it is sent to the premises in a prepaid registered letter or by the recorded delivery service and is not returned to the authority sending it ; or
  - (ii) it is delivered to some person on those premises ; or
  - (iii) it is affixed conspicuously to some object on those premises.

(3) Subsection (4) below applies where—

- (a) the notice or other document is required to be served on or given to all persons having interests in, or being occupiers of, premises comprised in any land ; and
- (b) it appears to the authority required to serve or give the notice or other document that any part of that land is unoccupied.

(4) In such a case the notice or document shall be taken to be duly served on all persons having interests in, and on any

occupiers of, premises comprised in that part of the land (other than an owner who in accordance with the relevant provisions of this Act has given to that authority an address for the service of the notice on him) if—

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(a) being addressed to “the owners and any occupiers” of that part of the land (describing it), and

(b) marked as mentioned in subsection (2) above,

it is affixed conspicuously to some object on the land.

**76.**—(1) Where the fee simple of any ecclesiastical property is in abeyance, it shall be treated for the purposes of a compulsory acquisition of the property under this Act as being vested in the Church Commissioners, and any notice to treat shall be served, or be deemed to have been served, accordingly. Ecclesiastical property.

(2) Where under this Act any notice, other than a notice to treat, is required to be served on an owner of land, and the land is ecclesiastical property, a like notice shall be served on the Church Commissioners.

**77.**—(1) The Secretary of State may make regulations for the purpose of prescribing anything which is authorised or required to be prescribed under this Act. Regulations and orders.

(2) Regulations under this Act shall be made by statutory instrument, which shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(3) The power to make orders under sections 1, 2, 40 to 42 and 60 above is exercisable by statutory instrument, and the power conferred by section 14 of the Interpretation Act 1978 (implied power to amend) 1978 c. 30.

(a) does not apply to an order under section 40 above, but

(b) does apply to any other order under this Act (as well as to those under sections 1, 2, 41, 42 and 60) as if that order were made by statutory instrument.

(4) A statutory instrument containing an order under this Act is subject to annulment in pursuance of a resolution of either House of Parliament if—

(a) the order is under section 1 and—

(i) the order is one designating an area as the site of a proposed new town, or one designating an additional area of not less than 500 acres which would extend the area of a new town by not less than 10 per cent., and

(ii) an objection to the order was duly made by a county planning authority and had not been withdrawn at the time the order was made ; or

## PART V

(b) the order is under section 2 or section 42.

(5) An order under section 39(5) or section 60 above shall be of no effect until it is approved by a resolution of the Commons House of Parliament.

Meaning etc. of  
"appropriate  
Minister".

**78.**—(1) In this Act "the appropriate Minister" means—

- (a) in relation to statutory undertakers carrying on any railway, light railway, tramway, road transport, dock, harbour or pier undertaking, the Secretary of State for Transport;
- (b) in relation to statutory undertakers carrying on an undertaking for the supply of electricity, gas or hydraulic power, the Secretary of State for Energy;
- (c) in relation to the British Airports Authority or the Civil Aviation Authority or statutory undertakers carrying on any lighthouse undertaking, the Secretary of State for Trade;
- (d) in relation to the Post Office or British Telecommunications, the Secretary of State for Industry;
- (e) in relation to statutory undertakers carrying on an undertaking for the supply of water, in the application of this Act to Wales, the Secretary of State for Wales; and
- (f) in relation to any other statutory undertakers, the Secretary of State for the Environment.

(2) References in this Act to the Secretary of State and the appropriate Minister have effect—

- (a) as references to the Secretary of State and the appropriate Minister, if the appropriate Minister is not the one concerned as the Secretary of State; and
  - (b) as references to the one concerned as the Secretary of State alone, if he is also the appropriate Minister.
- (3) If any question arises—
- (a) in relation to anything required or authorised to be done under this Act as to which Minister is or was the appropriate Minister in relation to any statutory undertakers, that question shall be determined by the Treasury;
  - (b) in relation to the authorisation under this Act of a compulsory acquisition of land, whether land of statutory undertakers is operational land, that question shall be determined by the Secretary of State and the appropriate Minister.



**79.**—(1) In this Act, except in so far as the context otherwise requires, “statutory undertakers” means—

**PART V**  
Meaning of  
“statutory  
undertakers”  
and  
“operational  
land”.

- (a) persons authorised by any enactment to carry on—
  - (i) any railway, light railway, tramway, road transport, water transport, canal or inland navigation undertaking, or
  - (ii) any dock, harbour, pier or lighthouse undertaking, or
  - (iii) any undertaking for the supply of electricity, gas, hydraulic power or water, or

(b) the Civil Aviation Authority or the British Airports Authority, or

(c) the Post Office or British Telecommunications, and “statutory undertaking” shall be construed accordingly.

(2) In this Act, subject to subsection (3) below, and except in so far as the context otherwise requires, “operational land”, in relation to statutory undertakers, means—

(a) land which is used for the purpose of the carrying on of their undertaking, and

(b) land in which an interest is held for that purpose, not being land which, in respect of its nature and situation, is comparable rather with land in general than with land which is used, or in which interests are held, for the purpose of the carrying on of statutory undertakings.

(3) In this Act “operational land”—

(a) in relation to the Post Office, has the meaning given by paragraph 93(4) of Schedule 4 to the Post Office Act 1969 c. 48. 1969;

(b) in relation to the Civil Aviation Authority, has the meaning given by paragraph 7 of Schedule 5 to the Civil Aviation Act 1971 c. 75. 1971;

(c) in relation to British Telecommunications, has the meaning given by paragraph 12(1) of Part II of Schedule 3 to the British Telecommunications Act 1981. 1981 c. 38.

**80.**—(1) In this Act, except in so far as the context otherwise requires—

General  
interpretation  
provisions.

“acquiring authority”, in relation to the acquisition under or for the purposes of this Act of any land (whether compulsorily or by agreement) or to a proposal so to acquire any land, means the development corporation, local highway authority or Minister of the Crown by whom the land is, or is proposed to be, acquired;

“the Commission” means the Commission for the New Towns;

## PART V

“common” includes any land subject to be enclosed under the Inclosure Acts 1845 to 1882, and any town or village green ;

“compulsory purchase order” means an order under section 10(1) or section 11(1) or (2) above ;

“development” includes re-development and “develop” shall be construed accordingly ;

“development corporation” has the meaning given by section 3 above ;

“ecclesiastical property” means land belonging to an ecclesiastical benefice, or being or forming part of a church subject to the jurisdiction of a bishop of any diocese or the site of such a church, or being or forming part of a burial ground subject to such jurisdiction ;

“enactment”, except in Schedule 10 to this Act, includes an enactment in any local or private Act of Parliament, and an order, byelaw or scheme made under an Act of Parliament ;

“fuel or field garden allotment” means any allotment set out as a fuel allotment, or a field garden allotment, under an Inclosure Act ;

“held inalienably”, in relation to land belonging to the National Trust, means that the land is inalienable under section 21 of the National Trust Act 1907 or section 8 of the National Trust Act 1939 ;

1907 c. cxxxvi.

1939 c. lxxxvi.

“land” includes messuages, tenements, and hereditaments, houses, and buildings of any tenure ;

“local authority” means the council of a county, district, London borough, parish or community, the Common Council of the City of London and any other authority being a local authority within the meaning of the Local Loans Act 1875, and includes a local highway authority, any drainage board and any joint board or joint committee if all the constituent authorities are such local authorities as are mentioned above ;

1875 c. 83.

“local highway authority” means a highway authority other than the Secretary of State ;

“National Trust” means the National Trust for Places of Historic Interest or Natural Beauty incorporated by the National Trust Act 1907 ;

“open space” means any land laid out as a public garden, or used for purposes of public recreation, or land being a disused burial ground ;

**"owner"**, in relation to any building or land, means a person, other than a mortgagee not in possession, who is for the time being entitled to dispose of the fee simple of the building or land, whether in possession or reversion, or who holds or is entitled to the rents and profits of the building or land under a lease or agreement of which the unexpired term exceeds 3 years ;

PART V

**"planning permission"** means permission under Part III of the Town and Country Planning Act 1971 ;

1971 c. 78.

**"prescribed"** (except in relation to matters expressly required or authorised by this Act to be prescribed in some other way) means prescribed by regulations under this Act ;

**"trolley vehicle"** means a mechanically propelled vehicle adapted for use on roads without rails and moved by power transmitted to it from some external source ;

**"Valuation Office"** means the Valuation Office of the Inland Revenue Department.

(2) Any reference in this Act to the area of a new town is a reference to the area designated as the site of that new town by the relevant order under section 1 above.

(3) Words in this Act importing a reference to service of a notice to treat shall be construed as including a reference to the constructive service of such a notice which, by virtue of any enactment, is to be deemed to be served.

(4) Nothing in this Act shall be taken as prejudicing the provisions of—

(a) Part I of the Housing Act 1980 (public sector tenants) ; 1980 c. 51

(b) Part X of the Local Government, Planning and Land Act 1980 (land held by public bodies). 1980 c. 65.

**81.** Subject to the saving and transitional provisions given effect to in Schedule 11 to this Act—

Saving and transitional provisions, consequential amendments, and repeals.

(a) the enactments specified in Schedule 12 to this Act have effect subject to the amendments (being amendments consequent on this Act) specified in that Schedule ; and

(b) the enactments specified in Schedule 13 to this Act (which include enactments which were spent before the passing of this Act) are repealed to the extent specified in the third column of that Schedule.

## PART V

Short title,  
extent and  
commence-  
ment.

**82.—(1)** This Act may be cited as the New Towns Act 1981.

**(2)** The provisions of this Act mentioned below (and no others) extend to Scotland—

- (a) section 60, and in relation to that section, subsections (3) and (5) of section 77 ;
- (b) sections 63 and 64 and (so far as it relates to Scotland) section 66 ;
- (c) paragraphs 1, 2 and 12 of Schedule 11 ;
- (d) Schedule 12 so far as it amends provisions which apply to Scotland ; and
- (e) Schedule 13 so far as it repeals section 1(2) of the New Towns Act 1975, section 14(4) of the New Towns (Amendment) Act 1976, the New Towns Act 1980, and sections 126 and 127 and (so far as it relates to Scotland) section 133 of the Local Government, Planning and Land Act 1980.

1975 c. 42.  
1976 c. 68.  
1980 c. 36.

1980 c. 65.

The provisions mentioned in paragraph (a) shall be taken to have extended to Scotland since section 43 of the New Towns Act 1965 as substituted by section 1(2) of the New Towns Act 1975 came into effect, without prejudice to sections 16 and 17 of the Interpretation Act 1978 (which relate to the effect of repeals).

1965 c. 59.

1978 c. 30.

**(3)** Except for paragraph 12 of Schedule 11, and Schedule 13 so far as it repeals section 14(4) of the New Towns (Amendment) Act 1976, nothing in this Act extends to Northern Ireland.

**(4)** This Act shall come into force on the expiry of the period of one month beginning on the date of its passing.

## SCHEDULES

## SCHEDULE 1

## Section 1.

## PROCEDURE FOR DESIGNATING AREA

*Making of orders under section 1*

1.—(1) Where the Secretary of State proposes to make an order under section 1 above he shall prepare a draft of the order, describing the area to be designated as the site of the proposed new town by reference to a map, either with or without descriptive matter, together with such statement as he considers necessary for indicating the size and general character of the proposed new town.

(2) In the case of any discrepancy between the map and any such descriptive matter, the descriptive matter shall prevail except in so far as may be otherwise provided by the draft order.

2.—(1) Before making the order the Secretary of State shall publish a notice—

- (a) in the London Gazette ;
- (b) in one or more newspapers circulating in the locality in which the proposed new town will be situated ; and
- (c) in such other newspapers, if any, as he considers appropriate in the circumstances.

(2) That notice shall—

- (a) describe the area to be designated as the site of the proposed new town ;
- (b) state that the draft of an order under section 1 above has been prepared by the Secretary of State in relation to that area and is about to be considered by him ;
- (c) name a place within that area where a copy of the draft order (including any map or descriptive matter annexed to it) and of the statement required by paragraph 1 above may be seen at any reasonable hour ;
- (d) specify the time (not being less than 28 days from the publication of the notice in the Gazette) within which, and the manner in which, objections to the proposed order may be made.

(3) The Secretary of State shall, not later than the date on which the notice is published in the Gazette, serve a like notice on the council of every county and of every district in which the land, or any part of the land, to which the order relates is situated, and on any other local authority who appear to him to be concerned with the order.

3. If any objection is duly made to the proposed order and is not withdrawn, the Secretary of State shall, before making the order, cause a public local inquiry to be held with respect to the objection, and shall consider the report of the person by whom the inquiry was held.

## SCH. 1

4. Subject to paragraph 3 above, the Secretary of State may make the order either in terms of the draft or subject to such modifications as he thinks fit, but, except with the consent of all persons interested, he shall not make the order subject to a modification which includes in the area designated as the site of the proposed new town any land not so designated in the draft order.

5.—(1) As soon as may be after an order has been made as provided by this Schedule, the Secretary of State shall publish as provided in paragraph 2(1) above a notice stating that the order has been made and naming a place (within the area designated by the order as the site of the proposed new town) where a copy of the order may be seen at any reasonable hour.

(2) The Secretary of State shall serve a like notice—

- (a) on any local authority on whom notice of the proposed order was served under paragraph 2 ; and
- (b) on any other person who has duly made an objection to the proposed order and, at or after the time of making that objection, has sent to the Secretary of State a request in writing to serve him with the notice required by this paragraph, giving an address for service.

*Validity and date of operation of orders under section 1*

6.—(1) If any person aggrieved by an order under section 1 above desires to question the validity of that order, or of any provision contained in it, on the ground—

- (a) that it is not within the powers of this Act, or
- (b) that any requirement of this Act has not been complied with in relation to the order,

he may, within 6 weeks from the date on which notice of the making of the order is first published in accordance with the relevant provisions of this Schedule apply to the High Court.

(2) On any such application the Court—

- (a) may by interim order suspend the operation of the order or any of its provisions, either generally or in so far as it affects any of the applicant's property, until the final determination of the proceedings ; and
- (b) if satisfied that the order or any of its provisions—
  - (i) is not within the powers of this Act, or
  - (ii) that the applicant's interests have been substantially prejudiced by any requirement of this Act not having been complied with,

may quash the order or any of its provisions, either generally or in so far as it affects any of the applicant's property.

7. Subject to paragraph 6 above, an order under section 1 above shall not, either before or after it has been made, be questioned in any legal proceedings whatsoever, and shall become operative on the date on which notice is first published as mentioned in that paragraph.

## SCHEDULE 2

## Section 2.

## EFFECT OF ORDER FOR REDUCTION OF DESIGNATED AREA

*Disposal of land*

1.—(1) Subject to sub-paragraphs (2) to (4) below, the development corporation shall dispose of any land which it has acquired—

- (a) which falls within the excluded land ; and
- (b) which the corporation does not require for purposes connected with the development of the new town or for the provision of services for the purposes of the new town.

(2) The duty mentioned in sub-paragraph (1) above shall not be performed so as to dispose of land by way of gift, mortgage or charge.

(3) A corporation shall not without the Secretary of State's consent (given generally or specially) perform the duty so as—

- (a) to transfer the freehold of land ; or
- (b) to grant a lease of land for a term of more than 99 years.

(4) A corporation shall comply with such directions as the Secretary of State may give—

- (a) for preventing the duty from being performed ; or
- (b) for restricting the duty ; or
- (c) for requiring it to be performed in a manner specified in the directions.

(5) Before giving a direction under sub-paragraph (4) above, the Secretary of State shall consult the corporation, unless he is satisfied that because of urgency consultation is impracticable.

(6) Where a corporation purports to dispose of land by virtue of this paragraph, then—

- (a) in favour of a person claiming under the corporation, the disposal so purporting to be made shall not be invalid by reason that any consent of the Secretary of State required under this paragraph has not been given or that any direction of his given under this paragraph has not been complied with ; and
- (b) a person dealing with the corporation, or a person claiming under the corporation, shall not be concerned to see or enquire whether any such consent has been given or whether any such direction has been given or complied with.

(7) References in this paragraph to disposing of land include references to granting an interest in or right over land.

*Licensing*

2. Section 111 of the Licensing Act 1964 shall continue to operate 1964 c. 26. as respects an application—

- (a) made in relation to land before it becomes excluded land, or

## SCH. 2

(b) made at the next licensing sessions held afterwards, but the excluded land shall not otherwise be treated for the purposes of Part VI of that Act as comprised in the new town.

*"Excluded land"*

3. Land ceasing to be contained in the area of a new town by virtue of section 2 above is in this Schedule called "excluded land".

## Section 3.

## SCHEDULE 3

## CONSTITUTION AND PROCEEDINGS OF DEVELOPMENT CORPORATIONS

*Appointment of members and tenure of office*

1.—(1) The members of a development corporation (in this Schedule referred to as "the corporation") shall be appointed by the Secretary of State after consultation with such local authorities as appear to him to be concerned with the development of the new town, and in appointing members of the corporation he shall have regard to the desirability of securing the services of one or more persons resident in or having special knowledge of the locality in which the new town will be situated.

(2) The Secretary of State shall appoint two of the members to be respectively chairman and deputy chairman of the corporation.

2. Subject to the following provisions of this Schedule, a member of the corporation, and the chairman and deputy chairman of the corporation, shall hold and vacate office as such in accordance with the terms of the instrument by which they are respectively appointed.

3. If the chairman or deputy chairman of the corporation ceases to be a member of the corporation, he shall also cease to be chairman or deputy chairman, as the case may be.

4. Any member of the corporation may, by notice in writing addressed to the Secretary of State, resign his membership; and the chairman or deputy chairman may, by the like notice, resign his office as such.

5. If the Secretary of State is satisfied that a member of the corporation—

(a) has become bankrupt or made an arrangement with his creditors, or

(b) is incapacitated by physical or mental illness, or

(c) has been absent from meetings of the corporation for a period longer than 3 consecutive months without the permission of the corporation, or

(d) is otherwise unable or unfit to discharge the functions of a member, or is unsuitable to continue as a member,

the Secretary of State may remove him from his office as a member of the corporation.



6. A member of the corporation who ceases to be a member or ceases to be chairman or deputy chairman shall be eligible for reappointment.

#### *Remuneration*

7. The corporation shall pay to their members, in respect of their office as such, such remuneration and such reasonable allowances in respect of expenses properly incurred in the performance of their duties as may be determined by the Secretary of State with the consent of the Minister for the Civil Service, and shall pay to the chairman and deputy chairman, in respect of their office as such, such additional remuneration as may be so determined.

#### *Pension benefits for chairmen*

8. In the case of any such person, who is or has been the chairman of the corporation, as the Secretary of State may with the consent of the Minister for the Civil Service determine, the Secretary of State may direct the corporation—

- (a) to pay to or in respect of that person on his retirement or death such pension, allowance or gratuity as may be so determined ; or
- (b) to make payments towards the provision of such a pension, allowance or gratuity.

#### *Meetings and proceedings*

9. The quorum of the corporation and the arrangements relating to their meetings shall, subject to any directions given by the Secretary of State, be such as the corporation may determine.

10. The validity of any proceeding of the corporation shall not be affected by any vacancy among their members or by any defect in the appointment of any of their members.

#### *Instruments, etc.*

11. The fixing of the seal of the corporation shall be authenticated by the signature of the chairman or of some other member authorised either generally or specially by the corporation to act for that purpose.

12. Any contract or instrument which, if made or executed by a person not being a body corporate, would not be required to be under seal may be made or executed on behalf of the corporation by any person generally or specially authorised by them to act for that purpose.

13. Any document purporting to be a document duly executed under the seal of the corporation shall be received in evidence and shall, unless the contrary is proved, be deemed to be so executed.

Sections 10, 11,  
13.

## SCHEDULE 4

### PROCEDURE FOR AUTHORISING COMPULSORY ACQUISITIONS

#### PART I

#### *Acquisitions by development corporations and local highway authorities*

1.—(1) A compulsory purchase order made under this Act by a development corporation or local highway authority—

(a) shall designate the land to which it relates by reference to a map annexed to it, either with or without descriptive matter, and

(b) subject to that, shall be in such form as may be prescribed.

(2) In the case of any discrepancy between the map and any such descriptive matter, the descriptive matter shall prevail except in so far as may be otherwise provided by the order.

2.—(1) After submitting the order to the Secretary of State, the acquiring authority—

(a) shall publish a notice in the prescribed form describing the land, stating that an order authorising the compulsory acquisition of that land has been submitted to the Secretary of State, naming a place where a copy of the order and of the map and any annexed descriptive matter may be seen at any reasonable hour, and specifying the time (not being less than 28 days from the first local advertisement) within which, and the manner in which, objections to the order may be made, and

(b) if the Secretary of State so directs in the case of the order in question, shall serve on every owner of any of the land to which the order relates a notice to the like effect as the notice required to be published under head (a) above,

except that head (b) above shall not apply if the order relates only to land within the area of a new town.

(2) The notice required to be published by sub-paragraph (1)(a) above shall be published—

(a) in the case of such an order as is described in the exception to sub-paragraph (1) above, and in any other case where service on owners is not effected under head (b) of that sub-paragraph, by publishing that notice—

(i) in the London Gazette, and

(ii) in each of two successive weeks, in one or more newspapers circulating in the locality in which the land to which the order relates is situated, and

(iii) by affixing a copy, addressed to “the owners and any occupiers” of the land (describing it), to some conspicuous object or objects on the land;

(b) where service on owners is effected under that head (b), by publishing it in one or more newspapers circulating in the locality in which the land to which the order relates is situated.

(3) Publication and, if applicable, service in accordance with the foregoing provisions of this paragraph shall be effected—

SCH. 4

- (a) in the case of an order relating only to land within the area of a new town, as soon as may be after the order has been submitted ;
- (b) in any other case, as soon as may be after the order has been submitted and any direction of the Secretary of State as to service on owners under sub-paragraph (1)(b) above has been given or he has notified the acquiring authority that he does not propose to give such a direction.

(4) In this paragraph “the first local advertisement”, in relation to a notice, means the first publication of the notice in a newspaper circulating in the locality where the land to which the notice relates is situated, and includes, in relation to a notice so published once only, the publication of that notice.

3. Subject to the provisions of paragraph 4 below in any case in which those provisions have effect, the Secretary of State may confirm the order with or without modification, but shall not, unless all persons interested consent, so modify it as to extend it to any land which was not designated by the order as submitted.

4.—(1) If any objection is duly made to the order and is not withdrawn, the following provisions of this paragraph shall have effect.

For the purposes of this Schedule an objection shall not be treated as duly made unless—

- (a) it is made within the time and in the manner specified in the notice required by paragraph 2 above, and
- (b) a statement in writing of the grounds of the objection is comprised in or submitted with the objection.

(2) Unless the Secretary of State decides apart from the objection not to confirm the order, or decides to make a modification which is agreed to by the objector as meeting the objection, the Secretary of State shall, before making a final decision, consider the grounds of the objection as set out in the statement, and may, if he thinks fit, require the objector to submit within a specified period a further statement in writing as to any of the matters to which the objection relates.

(3) In so far as the Secretary of State, after considering the grounds of the objection as set out in the original statement and any such further statement, is satisfied—

- (a) that the objection relates to a matter which can be dealt with in the assessment of compensation, or
- (b) in the case of an order relating to land within the area of a new town, that the objection is made on the ground that the acquisition is unnecessary or inexpedient,

he may treat the objection as irrelevant for the purpose of making a final decision.

## SCH. 4

## (4) If—

- (a) the Secretary of State, after considering the grounds of the objection as set out in the original statement and any such further statement is satisfied that for the purpose of making a final decision he is sufficiently informed as to the matters to which the objection relates, or
- (b) where a further statement has been required, it is not submitted within the specified period,

the Secretary of State may make a final decision without further investigation as to those matters.

(5) Subject to sub-paragraphs (3) and (4) above, the Secretary of State—

- (a) shall, before making a final decision, afford to the objector an opportunity of appearing before and being heard by a person appointed for the purpose by the Secretary of State ; and
- (b) shall, if the person making the objection avails himself of that opportunity, afford an opportunity of appearing and being heard on the same occasion to the acquiring authority and to any other persons to whom it appears to the Secretary of State to be expedient to afford it.

(6) Notwithstanding anything in the foregoing provisions of this paragraph, if it appears to the Secretary of State that the matters to which the objection relates are such as to require investigation by public local inquiry before he makes a final decision—

- (a) he shall cause such an inquiry to be held ; and
- (b) where he determines to cause such an inquiry to be held, any of the requirements of those provisions to which effect has not been given at the time when he so determines shall be dispensed with.

(7) In this paragraph any reference to making a final decision, in relation to an order, is a reference to deciding—

- (a) whether to confirm the order, or
- (b) what modification, if any, ought to be made.

5. As soon as may be after the order has been confirmed the acquiring authority shall publish in one or more newspapers circulating in the locality in which the land designated by the order is situated a notice in the prescribed form—

- (a) describing the land,
- (b) stating that the order has been confirmed, and
- (c) naming a place where a copy of the order and of the map and any annexed descriptive matter may be seen at any reasonable hour,

and shall serve a like notice on—

- (i) any owner or occupier of any of the land designated by the

SCH. 4

order who, at any time after the publication of the notice of the order as submitted, has sent to the acquiring authority a request in writing to serve him with the notice required by this paragraph giving an address for service and the prescribed particulars of his interest ;

- (ii) any person who has duly made an objection to the order and at the time of making it or afterwards has sent to the acquiring authority such a request ; and
- (iii) such other persons, if any, as the Secretary of State may specify, whether individually or as members of a class of persons.

#### 6. Where—

- (a) proceedings are necessary for the purposes of paragraphs 1, 2 and 4 above in relation to an order authorising a compulsory acquisition of land, and
- (b) that land is in an area proposed to be designated as the site of a new town by an order a draft of which has been published in accordance with Schedule 1 to this Act,

the Secretary of State may by regulations provide for enabling the proceedings referred to in head (a) to be taken, so far as may be practicable, contemporaneously with the proceedings on the order referred to in head (b).

### PART II

#### *Special provisions applying to acquisitions by local highway authorities*

7.—(1) Subject to this paragraph, where a compulsory purchase order under section 11(1) above is submitted to the Secretary of State the notice required to be published under paragraph 2 above shall be published not only as mentioned in that paragraph but also by being exhibited at such places in the locality to which the order relates as appear to the acquiring authority to be suitable for bringing it to the attention of all persons concerned.

(2) Sub-paragraph (1) above shall not apply in any case where the Secretary of State is satisfied that the land to which the compulsory purchase order relates is required for the purpose of a project—

- (a) which was adequately set out in a statement prepared for the purposes of an order under section 1 above which has been made ; or
- (b) which has been the subject of an inquiry for the purposes of section 10, or, so far as it relates to trunk roads, section 14 of the Highways Act 1980 or of any of the following enactments no longer in force, that is to say, section 7 or 9 of the Highways Act 1959 (to which, respectively, the said section 10 and, so far as it relates to trunk roads, the said section 14 correspond) and the enactments to which the said sections 7 and 9 corresponded (namely, section 1(3) of the Trunk Roads Act 1936, sections 1 and 4 of the Trunk Roads Act 1946 and section 14(1) of the Special Roads Act 1949).

1980 c. 66.

1959 c. 25.

1936 c. 5.  
(1 Edw. 8 &  
Geo. 6.).  
1946 c. 30.  
1949 c. 32.

## SCH. 4

8. Where there is submitted to the Secretary of State a compulsory purchase order under section 11(1) above authorising the acquisition of any land forming a frontage to, or abutting on or adjacent to, a road, and the Secretary of State is satisfied as respects the whole or any part of the land—

- (a) that the acquisition would be requisite only for the purpose of controlling development, and
- (b) that every owner has entered, or is willing to enter, into such an agreement with the local highway authority or the Secretary of State as is provided for by section 9(1) above or is bound by such an agreement, and that the agreement or proposed agreement is satisfactory for that purpose.

the order shall not be confirmed so as to authorise the acquisition of any part of the land as to which the Secretary of State is satisfied as mentioned above.

## PART III

*Acquisitions by the Secretary of State*

9.—(1) A compulsory purchase order made under section 11(2) above by the Secretary of State—

- (a) shall designate the land to which it relates by reference to an annexed map either with or without descriptive matter, and
- (b) subject to that, shall be in such form as the Secretary of State may determine.

(2) In the case of any discrepancy between the map and any such descriptive matter, the descriptive matter shall prevail except in so far as may be otherwise provided by the order.

10. Where the Secretary of State proposes to make such an order, he shall prepare a draft, and then as soon as may be shall—

- (a) publish in the manner mentioned in paragraph 2 above, and
- (b) in any case in which he thinks it requisite to do so, serve on every owner of any of the land to which the order as prepared in draft relates,

a notice, in such form as he may determine, similar, with requisite adaptations, to the notice mentioned in paragraph 2(1).

11. Paragraphs 3, 4, 5, 7 and 8 above shall have effect in relation to such an order—

- (a) with the substitution, for references to the Secretary of State and to the acquiring authority, of references to the Secretary of State ;
- (b) with the substitution, for references to an order as submitted and to the confirmation of an order, of references respectively to an order as prepared in draft and to the making of an order ;
- (c) with the omission, in paragraph 4(5), of the reference to the acquiring authority ;

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- (d) with the substitution, for the references to a compulsory purchase order under section 11(1) above and to the notice required by paragraph 2 above, of references respectively to a compulsory purchase order under section 11(2) and to the notice required by paragraph 10 above; and
- (e) with the substitution, in paragraph 8, of the words "the Secretary of State proposes to make" for the words "there is submitted to the Secretary of State".

#### PART IV

##### *Special provisions as to certain descriptions of land*

12. In so far as a compulsory purchase order authorises the acquisition of land—

- (a) which is the property of a local authority, or
- (b) which is land belonging to the National Trust, and which is held by the Trust inalienably,

the order shall be subject to special parliamentary procedure in any case where an objection to the order has been duly made by the local authority or the National Trust, as the case may be, and has not been withdrawn.

13.—(1) In so far as a compulsory purchase order authorises the acquisition of any land forming part of any common, open space or fuel or field garden allotment, the order shall be subject to special parliamentary procedure unless the Secretary of State (in the case of an open space other than a common or such an allotment as is mentioned in this sub-paragraph) or the Minister of Agriculture, Fisheries and Food (in the case of a common or of a fuel or field garden allotment), is satisfied—

- (a) that there has been or will be given in exchange for such land other land, not being less in area, and being equally advantageous to the persons (if any) entitled to rights of common or other rights, and to the public, and that the land given in exchange has been or will be vested in the persons in whom the land acquired was vested, and subject to the like rights, trusts and incidents as attached to the land acquired, or
- (b) that the land is required for the widening of an existing highway and that the giving in exchange of other land is unnecessary, whether in the interests of the persons, if any, entitled to rights of common or other rights or in the interests of the public,

and certifies accordingly.

(2) Where it is proposed to give a certificate under this paragraph, the Secretary of State or the Minister having jurisdiction to give the certificate shall give public notice of his intention so to do, and—

- (a) after affording opportunity to all persons interested to make representations and objections in relation thereto, and
- (b) after causing a public local inquiry to be held in any case

## SCH. 4

where it appears to him to be expedient so to do, having regard to any representations or objections made, the Secretary of State or that Minister may, after considering any representations and objections made and, if any inquiry has been held, the report of the person who made the inquiry, give the certificate.

(3) A compulsory purchase order may provide for vesting land given in exchange as mentioned in sub-paragraph (1) above in the persons, and subject to the rights, trusts and incidents, therein mentioned, and for discharging the land acquired from all rights, trusts and incidents to which it was previously subject.

(4) As soon as may be after the giving of a certificate under this paragraph the acquiring authority shall publish in the London Gazette and, in each of two successive weeks, in one or more newspapers circulating in the locality in which the land designated by the order is situated, a notice in the prescribed form stating that the certificate has been given.

## PART V

*Validity and date of operation of compulsory purchase orders and certificates*

14.—(1) If any person aggrieved by a compulsory purchase order, or by a certificate under paragraph 13 above, desires to question the validity thereof, or of any provision contained therein, on the ground—

- (a) that it is not within the powers of this Act, or
- (b) that any requirement of this Act or any regulation made under this Act has not been complied with in relation to the order or certificate,

he may, within 6 weeks from the date on which notice of the confirmation or making of the order or of the giving of the certificate is first published in accordance with this Schedule, apply to the High Court.

(2) On any such application the Court—

- (a) may by interim order suspend the operation of the order or any of its provisions, or of the certificate, either generally or in so far as it affects the applicant's property, until the final determination of the proceedings; and
- (b) if satisfied that the order or any of its provisions, or the certificate, is not within the powers of this Act or that the applicant's interests have been substantially prejudiced by any requirement of this Act or of any regulation made under it not having been complied with, may quash the order or any of its provisions, or the certificate, either generally or in so far as it affects any of the applicant's property.

15. Subject to paragraph 14 above, a compulsory purchase order or a certificate under paragraph 13 above—

- (a) shall not, either before or after it has been made or confirmed



or given, be questioned in any legal proceedings whatsoever ; and SCH. 4

- (b) shall become operative on the date on which notice is first published as mentioned in that paragraph 14.

16. This Part of this Schedule—

- (a) shall not apply to an order which is confirmed by Act of Parliament under section 6 of the Statutory Orders (Special 1945 c. 18. Procedure) Act 1945, but, (except for that)—

- (b) shall have effect in relation to a compulsory purchase order to which that Act applies—

(i) as if in paragraph 14(1) above for the reference to the date on which notice of the confirmation or making of the order is first published in accordance with this Schedule there were substituted a reference to the date on which the order becomes operative under that Act of 1945, and

(ii) as if paragraph 15(b) above were omitted.

SCHEDULE 5

Section 13.

PROCEDURE FOR AUTHORISING COMPULSORY ACQUISITION OF  
STATUTORY UNDERTAKERS' OPERATIONAL LAND

PART I

*Acquisitions by development corporations and local  
highway authorities*

1. An application by a development corporation or local highway authority for the purposes of section 13(1)(a) above shall be in such form as may be prescribed, and shall describe by reference to a map the land to which the application relates.

2. As soon as may be after submitting the application to the Secretary of State and the appropriate Minister the acquiring authority shall serve on every owner, lessee and occupier of any land to which the application relates a notice in the prescribed form—

- (a) describing the land ;
- (b) stating that an application under section 13(1)(a) above has been submitted in relation to the land and is about to be considered by the Secretary of State and the appropriate Minister ;
- (c) naming a place where a copy of the application and of the map referred to in it may be seen at all reasonable hours ; and
- (d) specifying the time (not being less than 28 days from the service of the notice) within which, and the manner in which, objections to the application may be made.

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## 3.—(1) If—

(a) no objection is duly made by any of the persons on whom notices are required to be served, or

(b) if all objections so made are withdrawn,  
the Secretary of State and the appropriate Minister may, if they think fit, make a compulsory purchase order in accordance with the application, with or without modification, but shall not, unless all persons interested consent, make the order with any modification which would extend it to any land to which the application did not relate.

(2) If any objection is duly made by any of the persons on whom notices are required to be served and is not withdrawn, the Secretary of State and the appropriate Minister—

(a) shall, before making an order on the application, consider the objection, and

(b) shall, if either the person by whom the objection was made or the acquiring authority so desire, afford that person and the acquiring authority an opportunity of appearing before and being heard by a person appointed by the Secretary of State and the appropriate Minister for the purpose,

and they may then, if they think fit, make an order on the application.

(3) An objection shall not be deemed for the purposes of section 13 above or this Schedule to be duly made unless—

(a) it is made within the time and in the manner specified in the notice in that behalf ; and

(b) a statement in writing of the grounds of the objection is comprised in or submitted with the objection.

4. A compulsory purchase order made on such an application shall be in such form as the Secretary of State and the appropriate Minister may determine, and shall describe by reference to a map the land to which the order relates.

5. As soon as may be after a compulsory purchase order has been made on such an application the acquiring authority shall serve on every owner, lessee and occupier of any land to which the order relates a notice in the prescribed form stating that the order has been made and naming a place where a copy of the order and of the map referred to in the order may be seen at any reasonable hour.

## PART II

*Acquisitions by Secretary of State*

6. A compulsory purchase order made by the Secretary of State and the appropriate Minister in pursuance of section 13(1)(b) above—

(a) shall be in such form as they may determine ; and

(b) shall describe by reference to a map the land to which the order relates.

7. Where the Secretary of State and the appropriate Minister propose to make such an order they shall prepare a draft of it, and then shall as soon as may be serve on every owner, lessee and occupier of any land to which the draft relates a notice in such form as they may determine—

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- (a) describing the land ;
- (b) stating that the making of the order is proposed ;
- (c) naming a place where a copy of the draft and of the map referred to in the draft may be seen at any reasonable hour ; and
- (d) specifying the time (not being less than 28 days from the service of the notice) within which, and the manner in which, objections to the proposal may be made.

8. Paragraphs 3 and 5 above have effect in relation to such an order—

- (a) with the substitution, for references to an application and to the making of a compulsory purchase order upon it, of references to such an order as prepared in draft and to the making of such an order, and
- (b) with the omission of the references in paragraph 3(2) to the acquiring authority.

### PART III

#### *Modification of Schedule 4 Part V in relation to compulsory purchase orders made in pursuance of s.13*

9. Part V of Schedule 4 to this Act has effect in relation to a compulsory purchase order made in pursuance of section 13(1) above with the substitution, for the references to the date on which notice of the confirmation or making of the order is first published in accordance with that Schedule, of references to the date on which the service of notices required by paragraph 5 above is completed.

## SCHEDULE 6

Section 14.

### MODIFICATIONS OF ENACTMENTS FOR PURPOSES OF THIS ACT

#### PART I

##### *Compulsory Purchase Act 1965*

1.—(1) Part I of the Compulsory Purchase Act 1965 as applied 1965 c. 56. by this Act shall have effect as if section 27 (acquiring authority to make good deficiencies in rates) and section 32 (commencement) were omitted.

(2) In construing that Act as applied by this Act—

- (a) this Act or, in relation to a compulsory acquisition, this Act and the compulsory purchase order, shall be deemed to be the special Act ;
- (b) “ the acquiring authority ” has the meaning given by this Act ;

## SCH. 6

- (c) "subject to compulsory purchase" in relation to a compulsory acquisition means land the compulsory purchase of which is authorised by the compulsory purchase order, and in relation to the acquisition of land by agreement means land which may be purchased by agreement under this Act ;
- (d) references to the execution of the works shall be construed as including references to any erection, construction or carrying out of buildings or works authorised by this Act ;
- (e) in relation to any erection, construction or carrying out of any building or works so authorised, references in section 10 of that Act of 1965 (compensation for injurious affection) to the promoters of the undertaking shall be construed as references to the person by whom the buildings or works in question are erected, constructed or carried out ; and
- (f) references to the execution of the works shall be construed as including also references to any erection, construction or carrying out of buildings or works on behalf of the Secretary of State on land acquired by him under section 11 above, where the buildings or works are erected, constructed or carried out for the purposes for which the land was acquired.

## 2. Nothing—

1965 c. 56.

- (a) in Part I of the Compulsory Purchase Act 1965 as applied by this Act in relation to the acquisition of land by agreement, or

- (b) in this Act as so applying,

shall enable a local authority to sell for the purpose of this Act without the consent of any Minister any land which they could not have sold without that consent apart from this paragraph.

3. The acquiring authority shall, without prejudice to any power in that behalf exercisable by them apart from this paragraph, be entitled, notwithstanding anything in section 5 of that Act of 1965 or in any other provision of that Act, to acquire one or some of two or more interests subsisting in the land without acquiring the other interest or interests subsisting in it.

4.—(1) If the acquiring authority have, in respect of any of the land, served notice to treat on every owner of that land, they may at any time afterwards serve a notice—

- (a) on every occupier of any of that land, and

- (b) on every person (other than such an occupier) who, having been served with a notice to treat in respect of that land, has requested the acquiring authority in writing to serve him with any notice under this sub-paragraph and has given them an address for its service,

describing the land to which the notice relates and stating their intention to enter on and take possession of it at the expiry of such period (not being less than 14 days) as may be specified in the notice.

(2) The acquiring authority may enter on and take possession of the land to which such notice or notices relate— SCH. 6

- (a) at the expiry of the period specified in the notice, or
- (b) where two or more such notices are required, and the periods specified in the several notices do not expire at the same time, at the expiry of the last of those periods, or
- (c) at any time after those expiries,

without previous consent or compliance with section 11 of the Compulsory Purchase Act 1965 but subject to payment of the like compensation for the land of which possession is taken, and interest on the compensation agreed or awarded, as they would have been required to pay if those provisions had been complied with. 1965 c. 56.

(3) The provisions of this paragraph have effect instead of section 11(1) of the Compulsory Purchase Act 1965.

5. Section 30(3) of the Compulsory Purchase Act 1965 (service of notices in accordance with the Acquisition of Land Act 1946) does not apply but notice required to be served by the acquiring authority may, notwithstanding anything in subsection (1) of that section, be served and addressed in the manner specified in section 75 above in relation to notices required to be served under this Act. 1946 c. 49.

## PART II

### *Land Compensation Act 1961*

1961 c. 33.

6. The Lands Tribunal shall not take into account any interest in land, or any enhancement of the value of any interest in land by reason of any building erected, work done or improvement or alteration made, whether on the land acquired or on any other land with which the claimant is, or was at the time of the erection, doing or making of the building, works, improvement or alteration, directly or indirectly concerned, if that Tribunal is satisfied—

- (a) that the creation of the interest,
- (b) the erection of the building,
- (c) the doing of the work,
- (d) the making of the improvement, or
- (e) the alteration,

as the case may be, was not reasonably necessary and was undertaken with a view to obtaining compensation or increased compensation.

## SCHEDULE 7

Sections 15  
and 26.

### ASSESSMENT OF COMPENSATION TO STATUTORY UNDERTAKERS

#### *Measure of compensation*

1.—(1) Where statutory undertakers are entitled to compensation as mentioned in section 15 or section 26(7) above, the amount of the compensation shall (subject to paragraph 2 below) be an amount calculated in accordance with the following provisions of this paragraph.

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(2) That amount, subject to sub-paragraph (3) below, shall be the aggregate of the following amounts, that is—

(a) the amount of any expenditure reasonably incurred in acquiring land, providing apparatus, erecting buildings or doing work for the purpose of any adjustment of the carrying on of the undertaking rendered necessary by the proceeding giving rise to compensation ;

(b) whichever of the following is applicable, namely—

(i) where such an adjustment is made—

A the estimated amount of any decrease in net receipts from the carrying on of the undertaking pending the adjustment, in so far as the decrease is directly attributable to the proceeding giving rise to compensation, together with

B such amount as appears reasonable compensation for any estimated decrease in net receipts from the carrying on of the undertaking in the period after the adjustment has been completed, in so far as the decrease is directly attributable to the adjustment, or

(ii) where no such adjustment is made, such amount as appears reasonable compensation for any estimated decrease in net receipts from the carrying on of the undertaking which is directly attributable to the proceeding giving rise to compensation ;

(c) where the compensation is under section 26(7), and is in respect of the imposition of a requirement to remove apparatus, the amount of any expenditure reasonably incurred by the statutory undertakers in complying with the requirement, reduced by the value after removal of the apparatus removed.

(3) Where any such adjustment as is mentioned in sub-paragraph (2)(a) above is made, the aggregate amount mentioned in that sub-paragraph shall be reduced by such amount (if any) as appears to the Lands Tribunal to be appropriate to offset—

(a) the estimated value of any property (whether moveable or immoveable) belonging to the statutory undertakers and used for the carrying on of their undertaking which, in consequence of the adjustment, ceases to be so used, in so far as the value of the property has not been taken into account under sub-paragraph (2)(c) above, and

(b) the estimated amount of any increase in net receipts from the carrying on of the undertaking in the period after the adjustment has been completed, in so far as that amount has not been taken into account under sub-paragraph (2)(b) above and is directly attributable to the adjustment,

and by any further amount which appears to the Lands Tribunal to be appropriate, having regard to any increase in the capital value of immoveable property belonging to the statutory undertakers which is

directly attributable to the adjustment, allowance being made for any reduction made under paragraph (b) above.

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(4) References in this paragraph to a decrease in net receipts shall be construed as references to the amount by which a balance of receipts over expenditure is decreased, or a balance of expenditure over receipts is increased, or, where a balance of receipts over expenditure is converted into a balance of expenditure over receipts, as references to the aggregate of the two balances; and references to an increase in net receipts shall be construed accordingly.

(5) In this paragraph "proceeding giving rise to compensation" means the particular action (that is, the acquisition, the extinguishment of a right or the imposition of a requirement) in respect of which compensation falls to be assessed, as distinct from any development or project in connection with which that action may have been taken.

#### *Exclusion of paragraph 1 at option of statutory undertakers*

2.—(1) Where statutory undertakers are entitled to compensation in respect of a compulsory acquisition, the statutory undertakers may by notice in writing under this paragraph elect that the compensation shall be ascertained in accordance with the enactments (other than rule (5) of the rules set out in section 5 of the Land Compensation Act 1961) which would be applicable apart from paragraph 1 above; and if the undertakers so elect the compensation shall be ascertained accordingly. 1961 c. 33.

(2) An election under this paragraph may be made either in respect of the whole of the land comprised in the compulsory acquisition in question or in respect of part of that land.

(3) Any notice under this section shall be given to the acquiring authority before the end of the period of 2 months from the date of service of notice to treat in respect of the interest of the statutory undertakers.

#### *Procedure for assessing compensation where paragraph 1 applies*

3.—(1) Where the amount of any such compensation as is mentioned in paragraph 1(1) above falls to be ascertained in accordance with the provisions of that paragraph 1, the compensation shall, in default of agreement, be assessed by the Lands Tribunal, if apart from this paragraph it would not fall to be so assessed.

(2) For the purposes of any proceedings arising before the Lands Tribunal in respect of compensation falling to be ascertained as mentioned in sub-paragraph (1) above, sections 2 and 4 of the Land Compensation Act 1961 apply as they apply to proceedings on a question referred to the Tribunal under section 1 of that Act, but with the substitution in section 4 of that Act, for references to the acquiring authority, of references to the person from whom the compensation is claimed.

Sections 23 and  
31.

## SCHEDULE 8

### PROCEDURE FOR DEALING WITH OBJECTIONS TO ORDERS UNDER SECTIONS 23, 28 AND 30

1. In this Schedule, "the relevant Minister" means—

- (a) in relation to an order under section 23 above, the Secretary of State,
- (b) in relation to an order under section 28 above, the Secretary of State and the appropriate Minister,
- (c) in relation to an order under section 30 above, the appropriate Minister,

and any reference to making a final decision, in relation to an order, is a reference to deciding whether to make the order or what modification, if any, ought to be made.

2. Unless the relevant Minister decides apart from the objection not to make the order, or decides to make a modification which is agreed to by the objector as meeting the objection, the relevant Minister—

- (a) shall, before making a final decision, consider the grounds of the objection as set out in the statement comprised in or submitted with the objection, and
- (b) may, if he thinks fit, require the objector to submit within a specified period a further statement in writing as to any of the matters to which the objection relates.

3. In so far as the relevant Minister, after considering the grounds of the objection as set out in the original statement and in any such further statement, is satisfied that the objection relates to a matter which can be dealt with in the assessment of compensation, the relevant Minister may treat the objection as irrelevant for the purpose of making a final decision.

4. If—

- (a) after considering the grounds of the objection as set out in the original statement and in any such further statement, the relevant Minister is satisfied that, for the purpose of making a final decision, he is sufficiently informed as to the matters to which the objection relates, or
- (b) where a further statement has been required, it is not submitted within the specified period,

the relevant Minister may make a final decision without further investigation as to those matters.

5. Subject to paragraphs 3 and 4 above, the relevant Minister—

- (a) shall, before making a final decision, afford to the objector an opportunity of appearing before, and being heard by, a person appointed for the purpose by the relevant Minister ; and



(b) shall, if the objector avails himself of that opportunity, afford an opportunity of appearing and being heard on the same occasion—

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(i) to the statutory undertakers, development corporation or other person, if any, on whose representation the order is proposed to be made ; and

(ii) to any other persons to whom it appears to the relevant Minister to be expedient to afford such an opportunity.

6.—(1) Notwithstanding anything in the foregoing provisions of this Schedule, if it appears to the relevant Minister that the matters to which the objection relates are such as to require investigation by public local inquiry before he makes a final decision, he shall cause such an inquiry to be held.

(2) Where the relevant Minister determines to cause such an inquiry to be held, any of the requirements of those provisions to which effect has not been given at the time of that determination shall be dispensed with.

## SCHEDULE 9

Section 35.

### ADDITIONAL PROVISIONS AS TO THE COMMISSION

#### *Appointment, resignation and removal of members*

1.—(1) The members of the Commission, of whom there shall be not more than 15, shall be appointed by the Secretary of State, and he shall appoint one of them to be chairman and one to be deputy chairman.

(2) Subject to the following provisions of this Schedule, a member of the Commission, and the chairman and deputy chairman, shall hold and vacate office as such in accordance with the terms of his appointment.

(3) If the chairman or deputy chairman of the Commission ceases to be a member of the Commission, he shall also cease to be chairman or deputy chairman.

(4) A member of the Commission may, by notice in writing addressed to the Secretary of State, resign his membership, and the chairman or deputy chairman may, by the like notice, resign his office as such.

(5) If the Secretary of State is satisfied that a member of the Commission—

- (a) has become bankrupt or made an arrangement with his creditors, or
- (b) is incapacitated by physical or mental illness, or
- (c) has been absent from meetings of the Commission for a period longer than 3 consecutive months without the permission of the Commission, or
- (d) is otherwise unable or unfit to discharge the functions of a member, or is unsuitable to continue as a member,

SCH. 9      the Secretary of State may remove him from his office as a member of the Commission.

(6) A member of the Commission who ceases to be a member or ceases to be chairman or deputy chairman shall be eligible for re-appointment.

*Remuneration, pensions, etc., of members*

2.—(1) The Secretary of State may, out of moneys provided by Parliament, pay to persons holding office as chairman, deputy chairman or member of the Commission such remuneration in respect of that office as he may with the consent of the Minister for the Civil Service determine, and the Commission may pay to those persons such reasonable allowances as may be so determined in respect of expenses properly incurred by them in the performance of their duties.

(2) In the case of any such person as the Secretary of State may with the consent of the Minister for the Civil Service determine, the Secretary of State may, in respect of that person's office as chairman, deputy chairman or member of the Commission, pay out of moneys provided by Parliament such pension, allowance or gratuity to or in respect of him on his retirement or death, or such contributions or other payments towards provision for such a pension, allowance or gratuity, as may be so determined.

(3) As soon as may be after the making of any determination under sub-paragraph (2) above, the Secretary of State shall lay before each House of Parliament a statement of the amount of the pension, allowance or gratuity, or the contributions or other payments towards pension, allowance or gratuity, as the case may be, payable in pursuance of the determination.

1972 c. 11.

(4) Where a member of the Commission is admitted in accordance with regulations made under section 7 of the Superannuation Act 1972 to participate in the benefits of a superannuation fund maintained by a local authority, then—

(a) sub-paragraph (2) above shall not apply to him ; and

(b) the Secretary of State shall make out of moneys provided by Parliament any payments which are required to be made to the superannuation fund in respect of him by the employing authority, and may make from his remuneration any deductions which the employing authority might make in respect of his contributions to that fund.

*Committees*

3.—(1) The Commission may make arrangements for any part of their business in any town, or in two or more towns, to be conducted on behalf of the Commission (but subject to their general control) by a committee consisting partly of persons who are not members or servants of the Commission.

(2) It is the Commission's duty to make, in relation to the management of land held by them in any town for the purpose of being let for dwellings, arrangements under this paragraph approved by

the Secretary of State, but on the first transfer by a transfer scheme (within the meaning of Part III of this Act) of any interest of the Commission in any dwellings in a new town, this sub-paragraph shall cease to have effect as regards that town.

(3) The Commission's appointments to any committee set up by virtue of this paragraph shall be subject to the Secretary of State's approval.

(4) Before making any appointment to a committee set up in pursuance of sub-paragraph (2) above, the Commission shall consult with the council of any district comprising a substantial part of the area for which the committee is set up.

(5) The Commission may adopt, in addition to the common seal in general use by the Commission, such additional common seals as they think fit for use on their behalf by committees set up under this paragraph.

#### *Remuneration and expenses of members of committees*

4. In the case of any such person as the Secretary of State may with the consent of the Minister for the Civil Service determine, the Secretary of State may, in respect of that person's service as member of any committee set up under paragraph 3(2) above, pay out of money provided by Parliament—

(a) such remuneration, and

(b) such allowances in respect of expenses properly incurred by that person in that capacity,

as may be so determined.

#### *Quorum, procedure and validity of proceedings of Commission and committees*

5.—(1) The quorum of the Commission and the arrangements relating to its meetings shall, subject to any directions given by the Secretary of State, be such as the Commission may determine.

(2) The quorum of any committee set up under paragraph 3 above and the arrangements relating to its meetings, so far as not provided for by the arrangements made for setting up the committee, shall be such as the committee may determine.

(3) The validity of any proceedings of the Commission or of such a committee shall not be affected by any vacancy among its members or by any defect in the appointment of any of its members.

#### *Sealing and execution of documents*

6.—(1) The fixing of the seal of the Commission shall be authenticated by the signature of the chairman or of some other member authorised generally or specially by the Commission to act for that purpose or, in the case of a seal adopted for use by a committee, by the signature of the chairman of the committee or of some other member of the committee authorised generally or specially by the committee to act for that purpose.

(2) Any contract or instrument which, if made or executed by a person not being a body corporate, would not be required to be under seal may be made or executed on behalf of the Commission

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by any person generally or specially authorised to act for that purpose by the Commission or a committee set up under paragraph 3 above.

(3) Any document purporting to be a document duly executed under the seal of the Commission shall be received in evidence and shall, unless the contrary is proved, be deemed to be so executed.

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## SCHEDULE 10

ADDITIONAL PROVISIONS AS TO TRANSFER TO COMMISSION  
OF PROPERTY OF DEVELOPMENT CORPORATION

1.—(1) Subject to the following provisions of this Schedule, where an order under this Act provides that on a specified date the property of a development corporation (so far as not excepted by the order) shall vest in the Commission, then on that date (referred to below as the transfer date) there shall by virtue of the order and without further assurance be transferred to the Commission all property, rights, liabilities and obligations which immediately before the transfer date were property, rights, liabilities or obligations of the corporation.

(2) Subject as aforesaid, every agreement to which the development corporation was a party immediately before the transfer date, whether in writing or not and whether or not of such a nature that rights, liabilities and obligations thereunder could be assigned by the corporation, shall, unless its terms or subject matter make it impossible that it should have effect as modified in the manner provided by this sub-paragraph, have effect as from the transfer date as if—

- (a) the Commission had been a party to the agreement ;
- (b) for any reference (however worded and whether express or implied) to the corporation there were substituted, as respects anything falling to be done on or after the transfer date, a reference to the Commission ;
- (c) for any reference (however worded and whether express or implied) to any member or officer of the corporation there were substituted, as respects anything falling to be done on or after the transfer date, a reference to such person as the Commission may appoint, or, in default of appointment, to the member or officer of the Commission who corresponds as nearly as may be to the member or officer in question of the corporation.

(3) Other documents, not being enactments, which refer, whether specifically or generally, to the corporation shall be construed in accordance with sub-paragraph (2) above so far as applicable.

(4) Without prejudice to the generality of the foregoing sub-paragraphs, where, by the operation of any of them, any right, liability or obligation vests in the Commission, the Commission and all other persons shall, as from the transfer date, have the same rights, powers and remedies (and, in particular, the same

rights as to the taking or resisting of legal proceedings or the making or resisting of applications to any authority) for asserting, perfecting or enforcing that right, liability or obligation as they would have had if it had at all times been a right, liability or obligation of the Commission.

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(5) Any legal proceedings or application to any authority pending on the transfer date by or against the development corporation (and not relating to property, rights, liabilities or obligations excepted by the order from the transfer to the Commission) may be continued on and after that date by or against the Commission.

2.—(1) Any such order as aforesaid may, if the Secretary of State sees fit, except from the transfer to the Commission—

- (a) any books, papers, or documents of the corporation,
- (b) any property (including in particular any trade or business) which the corporation have agreed to transfer to some person other than the Commission, together with the corporation's rights, liabilities and obligations under that agreement, and any other rights, liabilities or obligations which it is necessary for the corporation to retain in order to give effect to that agreement,
- (c) such other property as the Secretary of State thinks expedient for the purpose of enabling the corporation to discharge any functions remaining to it,

and may provide for the disposal of any property so excepted and of any property received by the corporation after the transfer date under any such agreement or otherwise.

(2) Any expenses of the corporation on or after the transfer date, so far as not defrayed out of any such property as is mentioned in sub-paragraph (1) above, shall be defrayed by the Commission.

3.—(1) Subject to the following provisions of this Schedule, on the transfer date this Act and any other enactment relating to areas designated under section 1 above as the site of a new town shall cease to apply to the town as an area so designated, except for the purpose of any functions remaining to the development corporation by virtue of paragraph 2 above; and nothing in paragraph 1 above shall be construed as conferring on the Commission any rights, liabilities or obligations of a development corporation under any enactment.

(2) Sub-paragraph (1) above shall not affect the operation of paragraph 1 above or of any other enactment in relation to things done by or to a development corporation before the transfer date or in relation to matters arising out of things so done; but no order shall be made under any enactment on or after the transfer date by virtue of this sub-paragraph.

(3) Without prejudice to the generality of sub-paragraph (2) above—

- (a) any permission for development in the new town granted by an order made, or having effect as if made, under

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1971 c. 78.

section 24 of the Town and Country Planning Act 1971 and in force on the transfer date shall continue in force as if references in the order to the development corporation included the Commission ;

(b) where an undertaking for the supply of water or a sewerage or sewage disposal undertaking carried on by the development corporation is transferred to the Commission, the Commission shall have power to carry on the undertaking, and any enactment applying in relation to the carrying on or disposal of the undertaking by the corporation or to the corporation in virtue of the undertaking shall have effect also in relation to the carrying on or disposal of it by the Commission and to the Commission in virtue of it ;

(c) where the development corporation were making contributions under section 4(4)(a) above to expenditure of a local authority or statutory undertakers, or had obtained the Secretary of State's consent to making such contributions, the Commission shall have power to make or continue to make those contributions, whether or not the development corporation had undertaken any obligation to do so ;

1958 c. 42.

(d) where the development corporation had entered into authorised arrangements within the meaning of Part I of the Housing (Financial Provisions) Act 1958, then for the purpose of those arrangements the Commission shall be deemed to be a housing association within the meaning of the Housing Act 1957, and any enactment applying in relation to the development corporation as a housing association or in virtue of the arrangements shall apply in like manner to the Commission.

1957 c. 56.

(4) Section 11 above and, so far as they have effect for the purposes of that section 11, the other provisions of this Act shall, notwithstanding anything in sub-paragraph (1) above, continue to have effect in relation to the town for such period (if any) as may be specified in the order under section 41 above relating to the town ; and that order may provide that any other enactment applying in relation to the town immediately before the transfer date shall continue to apply, subject or not to any modifications specified in the order.

1978 c. 30.

(5) Where an enactment ceases to apply in relation to the town by virtue of this Schedule, section 16(1) of the Interpretation Act 1978 (which relates to the effect of repeals), shall have effect as it has effect on the repeal of one Act by another.

4.—(1) In respect of expenditure of a development corporation on matters other than the provision of housing accommodation, the Secretary of State may with the Treasury's approval make to the Commission payments not exceeding those which, in his opinion, he would have made to the corporation under section 58(2) above.

(2) There shall be paid out of moneys provided by Parliament any expenses of the Secretary of State under sub-paragraph (1) above.

5.—(1) The Secretary of State's power to make advances to the Commission under section 58(5) above shall extend to the making of advances for the purpose of enabling the Commission to meet liabilities transferred to them from a development corporation, being liabilities properly chargeable to capital account by the corporation, or to make good to revenue account sums applied by a development corporation in meeting liabilities so chargeable.

(2) Where the liabilities of a development corporation for the repayment of advances under section 58(1) above, or for the payment of interest on such advances, are transferred to the Commission—

(a) sections 61(2) and (3), 66(1) in its application to the Commission, and 69(1)(a) above shall apply to those advances as if those advances had been made to the Commission under section 58(5); and

(b) section 69(1)(b) shall cease to apply in relation to them.

6. In this Schedule "enactment" means any Act of Parliament and any order, rules, regulations or similar instrument having effect by virtue of an Act of Parliament, and includes enactments passed or made on or after the date of the passing of this Act, except in so far as any such enactment provides to the contrary.

## SCHEDULE 11

Section 81.

### SAVING AND TRANSITIONAL PROVISIONS

#### *General*

1. Where any period of time specified in or under an enactment repealed by this Act is current at the commencement of this Act, this Act has effect as if the corresponding provision had been in force when the period begun to run.

2.—(1) Any provision of this Act relating to anything done or required or authorised to be done under or by reference to that provision or any other provision of this Act shall (subject to paragraphs 3 to 5 below) have effect as if any reference to that provision or that other provision, as the case may be, included a reference to the corresponding provision of the enactments repealed by this Act.

(2) Where the repealed provision was itself a re-enactment of an earlier provision the reference shall extend in the same way to that earlier provision and so on.

#### *Advances to Commission and to development corporations under previous enactments*

3. For the purposes of section 58(6) above—

(a) any advance to the Commission made before the commencement of the New Towns Act 1965 under section 3(2) of the New Towns Act 1959, or

1965 c. 59.  
1959 c. 62.

(b) any such advance made before the commencement of this Act under section 42(5) of that Act of 1965,

shall continue to be regarded as having been made under that section 3(2), or that section 42(5), as the case may be, and not under that section 58(6) (which corresponds to those provisions).

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1965 c. 59.

1946 c. 68.

## 4. For the purposes of section 60 above—

(a) any advance to a development corporation made before the commencement of the New Towns Act 1965 under section 12(1) of the New Towns Act 1946, or

(b) any such advance made before the commencement of this Act under section 42(1) of that Act of 1965,

shall continue to be regarded as having been made under that section 12(1), or that section 42(1), as the case may be, and not under section 58(1) above (which corresponds to those provisions).

## 5. For the purposes of section 60 above—

1959 c. 62.

(a) any advance to the Commission made before the commencement of the New Towns Act 1965 under section 3(1) of the New Towns Act 1959, or

(b) any such advance made before the commencement of this Act under section 42(4) of that Act of 1965,

shall continue to be regarded as having been made under that section 3(1), or that section 42(4), as the case may be, and not under section 58(5) above (which corresponds to those provisions).

*Saving as to certain provisions relating to housing*

1959 c. 62.

1980 c. 51.

6. Notwithstanding the repeal by this Act of subsections (2) and (5) of section 4 of the New Towns Act 1959 those subsections have such effect as they had immediately before the commencement of this Act; and the power conferred by virtue of sections 152(3) and 153(4) of the Housing Act 1980 to bring into operation Schedule 26 to that Act (repeals) has effect as if that Schedule included a reference to this paragraph.

1961 c. 33.

1966 c. 44.

*Land Compensation Act 1961*

7. Notwithstanding the repeal by this Act of the New Towns Act 1966, the amendments made by section 2 of and Part I of the Schedule to that Act to the Land Compensation Act 1961 continue to have effect as provided by that section 2.

1968 c. 13.

*National Loans Act 1968*

8. Section 24(2) of and Part I of Schedule 6 to the National Loans Act 1968 continue to have such effect in relation to sections 44(2) and (4), 45(2) and 46(5) of the New Towns Act 1965 as they had immediately before the commencement of this Act.

1972 c. 47.

*Housing Finance Act 1972*

9. Section 108(4) of and Part III of Schedule 11 to the Housing Finance Act 1972 continue to have such effect in relation to section 56(2) of and Schedule 10 to the New Towns Act 1965 as they had immediately before the commencement of this Act.

## 10. Nothing in this Act affects the operation of the savings made—

(a) in Part III of Schedule 11 to the Housing Finance Act 1972, in relation to its repeal (except as respects hostels) of paragraph 4(1), part of paragraph 4(4) and paragraph 6(2) of Schedule 10 to the New Towns Act 1965;



- (b) in Part V of that Schedule to that Act of 1972, in relation to its repeal (so far as respects hostels) of those provisions of that Act of 1965. SCH. 11

*Land Compensation Act 1973*

1973 c. 26.

11. Nothing in this Act affects the operation of the savings made in sections 72(6) and 86 of and Schedule 3 to the Land Compensation Act 1973 in relation to the repeal of section 11 of and paragraph 7 of Schedule 6 to the New Towns Act 1965.

1965 c. 59.

*House of Commons Disqualification Act 1975*

1975 c. 24.

12. Notwithstanding the repeal by this Act of the New Towns (Amendment) Act 1976, the amendment made by section 14(4) of that Act to the House of Commons Disqualification Act 1975 continues to have effect. 1976 c. 68.

*Schedule 25 to the Local Government, Planning and Land Act 1980* 1980 c. 65.

13.—(1) Nothing in—

- (a) paragraphs (a) and (b) of section 4(5) above,
- (b) section 17(3) above,
- (c) section 37(6) above,

affects a transaction or purported disposal made before the coming into force of Part I of Schedule 25 to the Local Government, Planning and Land Act 1980.

(2) In relation to any transaction or purported disposal made before the coming into force of Part I of that Schedule, for the words in sections 5(4) and 37(5) above “and such a person shall not be concerned to see or enquire whether a direction under that sub-section has been given or complied with” substitute “unless that person had actual notice of that direction”.

(3) The repeal by this Act of paragraph 5(2) of that Schedule does not affect the validity by virtue of that sub-paragraph of any consent given before the commencement of this Act.

SCHEDULE 12

Section 81.

CONSEQUENTIAL AMENDMENTS

*Licensing Act 1964 c. 26*

1. In the Licensing Act 1964—

- (a) in section 116(1), for the words from “under” to “providing” substitute the words “under section 41 of the New Towns Act 1981 providing”;
- (b) in section 117(1), for the words from “under” to “by” substitute the words “under section 1 of the New Towns Act 1981 by”;
- (c) in section 117(2), for the words from “under” to “providing” substitute the words “under section 41 of the New Towns Act 1981 providing”.

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*National Loans Act 1968 c. 13*

2. In Schedule 1 to the National Loans Act 1968, in the entry headed "New Towns Act 1965", for that heading substitute "New Towns Act 1981" and—

(a) for the reference to section "42(1)(4)(5)" substitute "58(1)(5)(6)";

(b) omit the references to sections 44(1) and (3), 45 and 46(5).

*New Towns (Scotland) Act 1968 c. 16*

3. In the New Towns (Scotland) Act 1968—

(a) in section 37(1), and

(b) in section 37A(1) and (2),

for "section 43 of the New Towns Act 1965" substitute "section 60 of the New Towns Act 1981".

*Agriculture (Miscellaneous Provisions) Act 1968 c. 34*

4. In section 13(2) of the Agriculture (Miscellaneous Provisions) Act 1968, for "section 7 of the New Towns Act 1965" substitute "section 10 of the New Towns Act 1981".

*Post Office Act 1969 c. 48*

5. In paragraph 93(1)(xxv) and (4)(e) of Part II of Schedule 4 to the Post Office Act 1969, for "New Towns Act 1965" substitute "New Towns Act 1981".

*Civil Aviation Act 1971 c. 75*

6. In paragraphs 5(w) and 7(e) of Schedule 5 to the Civil Aviation Act 1971, for "New Towns Act 1965" substitute "New Towns Act 1981".

*Housing Finance Act 1972 c. 47*

7. In section 93(1) of the Housing Finance Act 1972, for "section 3(2) of the New Towns Act 1965" substitute "section 4(2) of the New Towns Act 1981".

8. In section 106 of the Housing Finance Act 1972—

(a) in the definition of "development corporation", for "New Towns Act 1965" substitute "New Towns Act 1981";

(b) in the definition of "housing account", for "section 46 of the New Towns Act 1965" substitute "sections 67 to 71 of the New Towns Act 1981".

*Land Compensation Act 1973 c. 26*

9. In section 51 of the Land Compensation Act 1973—

(a) in subsection (1), for "New Towns Act 1965" substitute "New Towns Act 1981".

(b) in subsections (3) and (6), for "Act of 1965" substitute "Act of 1981".

10. In section 57(2) of the Land Compensation Act 1973, for "New Towns Act 1965" substitute "New Towns Act 1981".

11. In subsections (1) and (5) of section 72 of the Land Compensation Act 1973, for "New Towns Act 1965" substitute "New Towns Act 1981" and for "Act of 1965" substitute "Act of 1981".

*Water Act 1973 c. 37*

12. In section 15(10) of the Water Act 1973 for "New Towns Act 1965" substitute "New Towns Act 1981".

*Housing Act 1974 c. 44*

13. In the Housing Act 1974—

- (a) in section 5(3)(d),
- (b) in section 84, and
- (c) in section 99(2)(e),

for "New Towns Act 1965" substitute "New Towns Act 1981".

*Housing Rents and Subsidies Act 1975 c. 6*

14. In the Housing Rents and Subsidies Act 1975—

- (a) in section 16(1), and
- (b) in paragraph 9(2) of Schedule 1,

for "New Towns Act 1965" substitute "New Towns Act 1981".

*House of Commons Disqualification Act 1975 c. 24*

15. In Part II of Schedule 1 to the House of Commons Disqualification Act 1975, in the entry relating to a Development Corporation, for "New Towns Act 1965" substitute "New Towns Act 1981".

*Finance (No. 2) Act 1975 c. 45*

16. In section 71(3) of the Finance Act (No. 2) Act 1975 for "New Towns Act 1965" substitute "New Towns Act 1981".

*Community Land Act 1975 c. 77*

17. In section 1(2) of the Community Land Act 1975 for "New Towns Act 1965" substitute "New Towns Act 1981".

18. In section 6(1) of the Community Land Act 1975 (in the definition of "new town authority"), for "section 2 of the New Towns Act 1965" substitute "section 3 of the New Towns Act 1981".

*Airports Authority Act 1975 c. 78*

19. In section 19(1) of the Airports Authority Act 1975, for section 54(1) of the New Towns Act 1965" substitute "section 79 of the New Towns Act 1981".

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*Development of Rural Wales Act 1976 c. 75*

20. In section 3(2)(a) of the Development of Rural Wales Act 1976, for "section 2 of the New Towns Act 1965" substitute "section 3 of the New Towns Act 1981".

21. In the Development of Rural Wales Act 1976—

(a) in section 5(1),

(b) in section 34(1), and

(c) in paragraphs 8, 9(2)(a), 30(4) and 36(3) of Schedule 3, for "New Towns Act 1965" substitute "New Towns Act 1981".

22. In paragraph 16(4) of Schedule 3 to the Development of Rural Wales Act 1976, for "section 10 of the New Towns Act 1965" substitute "section 13 of the New Towns Act 1981".

*Rent (Agriculture) Act 1976 c. 80*

23. In section 5(3)(e) of the Rent (Agriculture) Act 1976, for "New Towns Act 1965" substitute "New Towns Act 1981".

*Rent Act 1977 c. 42*

24. In section 14(e) of the Rent Act 1977, for "New Towns Act 1965" substitute "New Towns Act 1981".

*Housing (Homeless Persons) Act 1977 c. 48*

25. In section 19(1) of the Housing (Homeless Persons) Act 1977, in the definition of "development corporation", for "New Towns Act 1965" substitute "New Towns Act 1981".

*National Health Service Act 1977 c. 49*

26. In section 123(1) of the National Health Service Act 1977, for "New Towns Act 1965" substitute "New Towns Act 1981".

*Housing Act 1980 c. 51*

27. In the Housing Act 1980—

(a) in section 50(1),

(b) in section 105,

(c) in section 140(2)(b), and

(d) in paragraph 3 of Schedule 20,

for "New Towns Act 1965" substitute "New Towns Act 1981".

*Local Government, Planning and Land Act 1980 c. 65*

28. In the Local Government, Planning and Land Act 1980—

(a) in section 4(4)(a),

(b) in section 20(1)(ii),

(c) in section 99(4),

(d) in paragraph 7 of Schedule 16, and

(e) in paragraph 1(7) of Schedule 32,

for "New Towns Act 1965" substitute "New Towns Act 1981".

29. In section 133 of the Local Government, Planning and Land Act 1980—

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(a) in subsection (1)—

(i) for the words from “‘ area of a new town ’” to “the 1965 Act” substitute “‘ development corporation ’ has the same meaning as in the New Towns Act 1981 ”;

(ii) omit the words “‘ development corporation ’ has (in the application of this Part to Scotland) the same meaning as in the 1968 Act ;” and “‘ the 1965 Act ’ means the New Towns Act 1965 ;”;

(b) in subsection (2) omit the words “ the 1965 Act ” ;

(c) omit subsection (3) ; and

(d) in subsection (4) after the word “ extend ” insert “ to Scotland (apart from this section) or ”.

*British Telecommunications Act 1981 c. 38*

30. In Part II of Schedule 3 to the British Telecommunications Act 1981—

(a) in paragraph 10(1)(q), and

(b) in paragraph 12(1)(b),

for “ New Towns Act 1965 ” substitute “ New Towns Act 1981 ”.

## Section 81.

## SCHEDULE 13

## REPEALS

| Chapter                  | Short title                                             | Extent of repeal                                                                                                             |
|--------------------------|---------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------|
| 7 & 8 Eliz. 2.<br>c. 62. | New Towns Act 1959.                                     | The whole Act.                                                                                                               |
| 1965 c. 59.              | New Towns Act 1965.                                     | The whole Act.                                                                                                               |
| 1966 c. 44.              | New Towns Act 1966.                                     | The whole Act.                                                                                                               |
| 1968 c. 13.              | National Loans Act 1968.                                | In Schedule 1, the entry so far as it relates to sections 44(1) and (3) and sections 45 and 46(5) of the New Towns Act 1965. |
| 1969 c. 48.              | Post Office Act 1969.                                   | In Schedule 4, paragraph 78.                                                                                                 |
| 1971 c. 78.              | Town and Country Planning Act 1971.                     | In Part II of Schedule 23, the entry relating to the New Towns Act 1965.                                                     |
| 1972 c. 11.              | Superannuation Act 1972.                                | In Schedule 6, paragraph 53.                                                                                                 |
| 1972 c. 47.              | Housing Finance Act 1972.                               | Section 14.                                                                                                                  |
| 1972 c. 70.              | Local Government Act 1972.                              | In Part II of Schedule 16, paragraph 56.                                                                                     |
|                          |                                                         | In Part II of Schedule 29, paragraph 29.                                                                                     |
| 1973 c. 26.              | Land Compensation Act 1973.                             | Section 72(6).                                                                                                               |
| 1973 c. 37.              | Water Act 1973.                                         | In Schedule 8, paragraphs 88 and 89.                                                                                         |
| 1974 c. 8.               | Statutory Corporations (Financial Provisions) Act 1974. | In Schedule 3, Part I.                                                                                                       |
| 1975 c. 42.              | New Towns Act 1975.                                     | The whole Act.                                                                                                               |
| 1975 c. 76.              | Local Land Charges Act 1975.                            | In Schedule 1, the entry relating to the New Towns Act 1965.                                                                 |
| 1976 c. 68.              | New Towns (Amendment) Act 1976.                         | The whole Act.                                                                                                               |
| 1976 c. 75.              | Development of Rural Wales Act 1976.                    | In Schedule 7, paragraphs 4 and 17.                                                                                          |
| 1976 c. 80.              | Rent (Agriculture) Act 1976.                            | In Schedule 8, paragraph 12.                                                                                                 |
| 1977 c. 23.              | New Towns Act 1977.                                     | The whole Act.                                                                                                               |
| 1977 c. 42.              | Rent Act 1977.                                          | In Schedule 23, paragraph 39.                                                                                                |
| 1978 c. 44.              | Employment Protection (Consolidation) Act 1978.         | In Schedule 16, paragraph 24.                                                                                                |
| 1980 c. 36.              | New Towns Act 1980.                                     | The whole Act.                                                                                                               |

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| Chapter                    | Short Title                                                | Extent of repeal                                                                                                                                                                                                                                                                                                                                                                                                                                |
|----------------------------|------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1980 c. 65.                | Local Government, Planning and Land Act 1980.              | Sections 126 to 130.<br>In section 133(1) the words—<br>“ ‘development corporation’<br>has (in the application of<br>this Part to Scotland) the<br>same meaning as in the 1968<br>Act ”, and<br>“ ‘the 1965 Act’ means the<br>New Towns Act 1965 ”.<br>In section 133(2) the words<br>“ the 1965 Act ”.<br>Section 133(3).<br>In Schedule 25, Part I.<br>In Schedule 24, paragraph 15.<br>In Part II of Schedule 3, paragraphs 11(2)(b) and 43. |
| 1980 c. 66.<br>1981 c. 38. | Highways Act 1980.<br>British Telecommunications Act 1981. |                                                                                                                                                                                                                                                                                                                                                                                                                                                 |

